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The
# POLITIC
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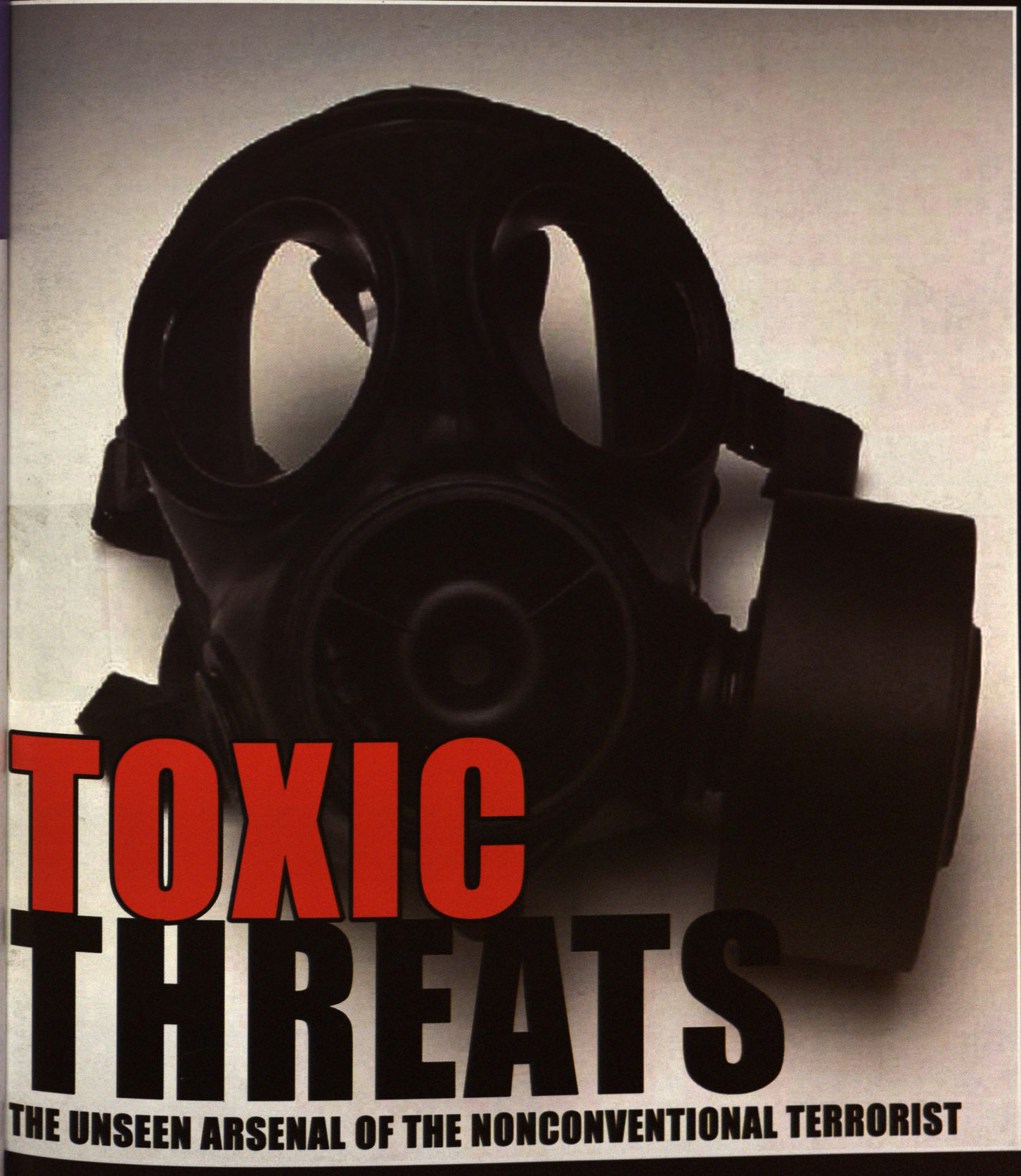
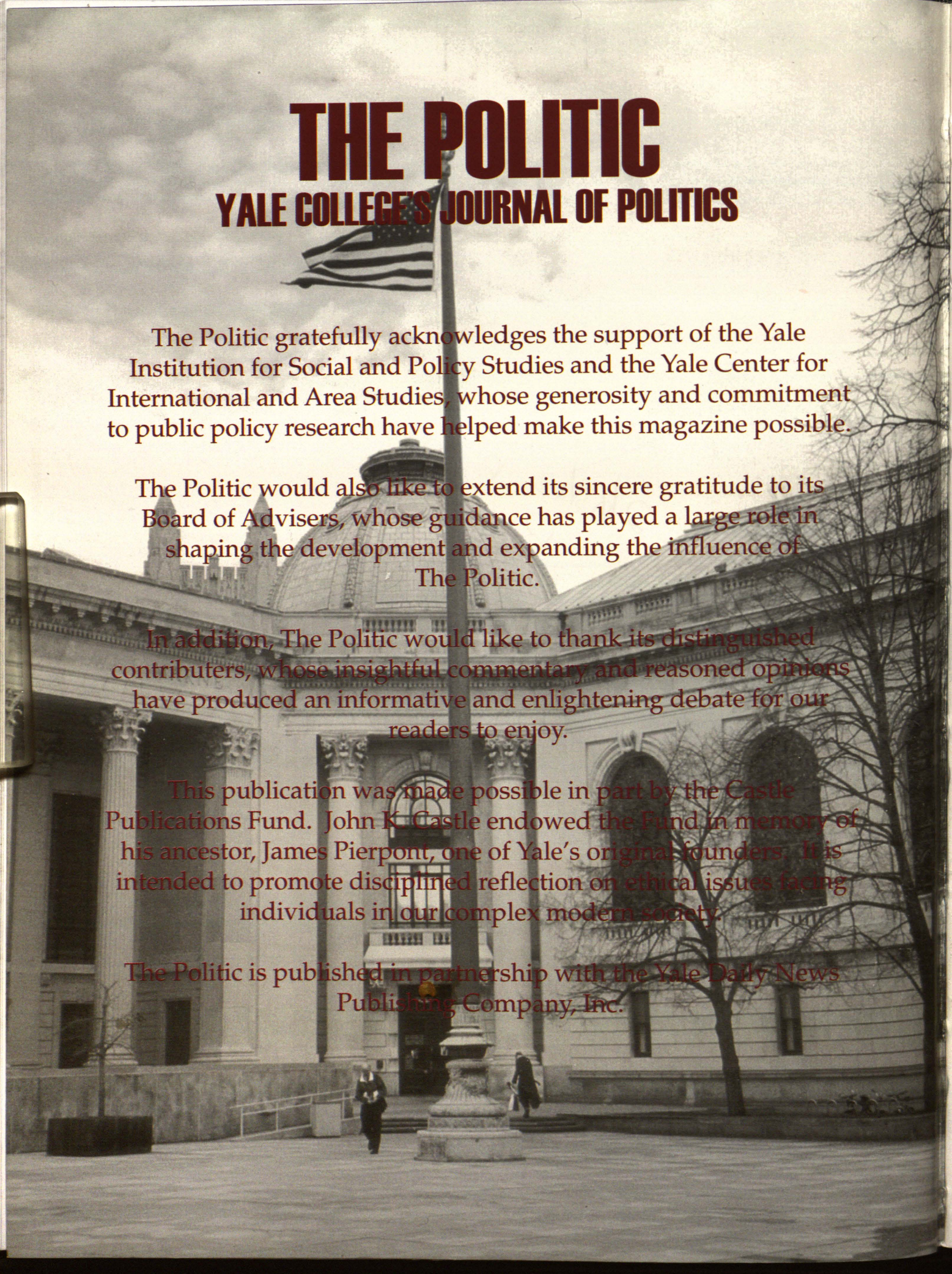


# TOXIC THREATS

## THE UNSEEN ARSENAL OF THE NONCONVENTIONAL TERRORIST



# THE POLITIC

## YALE COLLEGE'S JOURNAL OF POLITICS

The Politic gratefully acknowledges the support of the Yale Institution for Social and Policy Studies and the Yale Center for International and Area Studies, whose generosity and commitment to public policy research have helped make this magazine possible.

The Politic would also like to extend its sincere gratitude to its Board of Advisers, whose guidance has played a large role in shaping the development and expanding the influence of The Politic.

In addition, The Politic would like to thank its distinguished contributers, whose insightful commentary and reasoned opinions have produced an informative and enlightening debate for our readers to enjoy.

This publication was made possible in part by the Castle Publications Fund. John K. Castle endowed the Fund in memory of his ancestor, James Pierpont, one of Yale's original founders. It is intended to promote disciplined reflection on ethical issues facing individuals in our complex modern society.

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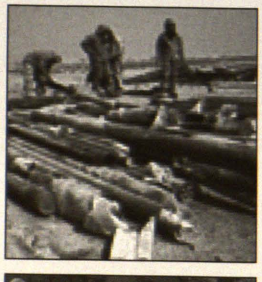
Winter 2002



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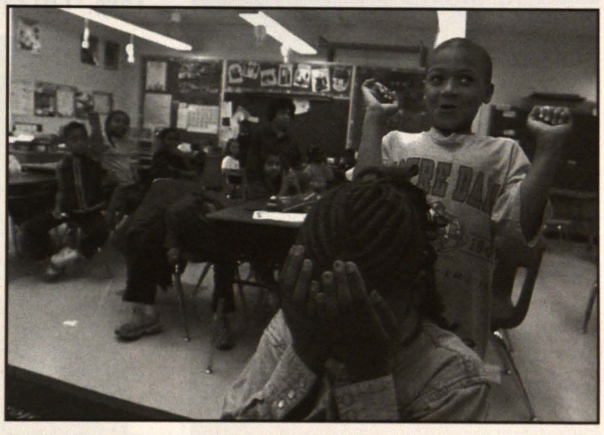

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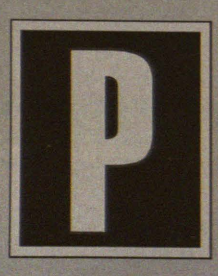

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# *Letter from the Editors*

Dear Reader,

With the lens of international attention focused squarely on terrorism and its consequences, the phenomenon of the terrorist attack has risen to new prominence. It is an act carried out in myriad ways, from suicide bombings to anthrax-laden letters. This issue of *The Politic* focuses on the implications of terrorism as it relates to weapons of mass destruction (WMD), examining the true nature of the threat posed by the specter of chemical, biological and nuclear warfare and asking the question: has the world prepared itself for this danger? Our contributors in this edition seek to provide answers to these and other troubling questions.

In a conversation with Dr. Jonathan B. Tucker, a former U.N. weapons inspector in Iraq and a Senior Fellow at the U.S. Institute of Peace, we examine the intricacies of arms inspections, exposing the shortcomings and uncovering the successes of these challenging operations. Professor D. Allan Bromley, the Sterling Professor of the Sciences at Yale Medical School, and Victoria Sutton, the Director of the Center for Biodefense, Law and Public Policy at Texas Tech University, provide a historical account of WMD, and examine measures and devices which might be next on the terrorist's list of tactics. Finally, Dr. Michael Allswede, a former FBI SWAT team member and a Visiting Associate Professor at the University of Pittsburgh Department of Emergency Medicine, critiques the systems in place for handling a chemical or biological attack and proposes a new method for assessing preparedness for WMD.

These insights provide an in-depth analysis of the development of and implications of WMD, and suggest ways in which both governments and individuals might respond to such attacks. With Osama bin Laden still at large and a potential war with Iraq looming on the horizon, the possibility of attack remains high while the predictability of an event remains relatively low. Still, it is important to ensure that the level of preparedness match the severity of the threat; the anthrax scare, and the sharp spike in Cipro prescriptions that followed in its wake, demonstrate both the power of such attacks and the susceptibility of the general public to paranoia and fear. It is the goal of this issue to reconcile the severity of the threat with the response it truly merits.

Sincerely,

Serge Grossman

Ben Schrader

Re: Challenges of the American Presidency

Dear Editor:

I could not agree more with President Ford's evaluation of the potential for U.S. action in Iraq. The President made two very important points in particular: first, as the Vietnam conflict demonstrated, initial public support for a military effort does not ensure indefinite public support. Second, domestic political and economic considerations should not be an impetus for military action. We should take action against Iraq only after it is proven to the public that Saddam Hussein is developing nuclear and chemical weapons capabilities.

President Bush is not heeding the warnings coming from President Ford and others. Our country is gearing up for a war in Iraq as we speak, despite the fact that no conclusive evidence that Saddam is developing these weapons has been presented to the international community. Even if this evidence is obtained and published, we should be wary of a Vietnam-like protracted conflict.

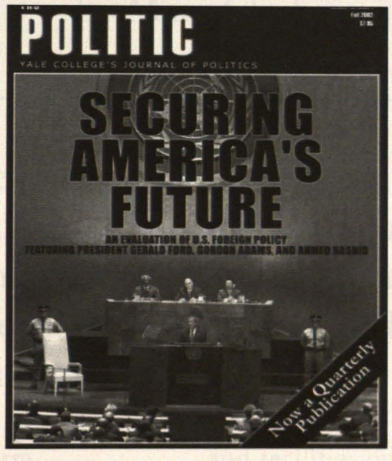
At the end of the interview, President Ford commented that he and other former Presidents have "always had a good line of communication" with the current White House. Perhaps these lines of communication should be improved further; our current President could certainly benefit from the wisdom and experience of his predecessors.

-Andrew Korn, BR '05

Re: Reinstating the Draft

Dear Editor:

Jacob Kiani's article in the last issue makes two fundamental errors in arguing for the reinstatement of the military draft in the United States. The first is practical: any elected official who would push for a return to mandatory conscription would immediately be voted out of office by a resounding consensus of voters. Why is this the case? The reason is the same that voluntary conscription is down in the armed services: Americans are not as willing to serve their country now as they have been in the past. Any politician promoting a return to the draft would be committing political suicide.




The second, and in my mind more egregious, error is made by the claim that serving in the armed services is the best or the only way to demonstrate patriotism. I do not doubt that our servicemen and women are deeply patriotic and have a great love of country. It bothers me, however, that Kiani equates patriotism with the unquestioning allegiance to the government demanded by the armed forces. What makes our country great is the ability of the public to dissent without fear of reprisal. Exercising this fundamental right does not make anyone less patriotic.

Kiani's article demonstrates that this reality has faded in the post-9/11 world. I do not disagree that the world today is a dangerous place with new and challenging issues facing our country. I fear that if we equate patriotism with unthinking loyalty to our government, however, we risk losing our most basic ideals. Before we contemplate radical proposals such as reinstating the draft, we must ask ourselves: is it worth the risk?

-Michael Bernstein, JE '04

Dear Editor:

Although I feel that Jacob Kiani brings forth a strong argument, he neglects to take into consideration the effect of the proposed draft on our military's morale. Given that 64 percent of young people have no desire to serve in the military, one could imagine that forcing a percentage of this sector into service might have negative ramifications on the performance of our military and consequently on the morale of our country. These numbers certainly imply a decline in the quality of service as the percentage of soldiers serving against their will rises.

In effect, forcing members of the military to protect us against their will may have a negative effect on homeland security if those serving are ambivalent about their role. America has a long-standing tradition of hometown pride that may be eclipsed by the reinstatement of the draft. Today, those who perish nobly in the service of their country are graced with honor and distinction after death. One can imagine a scenario in which a militia member who was forced into serving dies while in service; the press would erupt with stories of protest rather than stories of heroism.

Kiani is astute to propose that the U.S. Army currently has many shortcomings, including its failure to stand as a microcosm of the American people. I propose, however, that the most imperative aspect of a military is to be strong rather than representative (we in fact have a legislative branch for this purpose). To overlook intent in choosing our army seems to be sound in theory, yet potentially tragic in effect.

-Sarah Smith, MC '03

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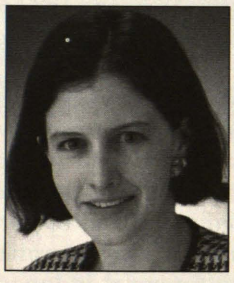
# ACHIEVING EQUITY

## *Three Issues and Their Impact on Urban Public Education*

by Mary Clark



Three issues of equity in urban public education impact students along intersecting race, sex, and economic axes. An examination of the distribution of public funds, sex segregation in vocational-technical programs, and the rise of all-girls charter schools sheds light on current policy debates regarding education reform.

**Public Funding**

Today's struggle over the distribution of tax revenue for public education focuses less on achieving funding equity across school districts and more on providing minimally adequate educational tools to all schoolchildren. From California to New York, litigation and other public advocacy has centered on access to the building blocks of a sound basic education, from the availability of appropriate textbooks and other curricular materials, to instruction by licensed teachers and the assurance of the sanitary conditions of the school buildings themselves. A coalition of civil rights organizations, led by the American Civil Liberties Union (ACLU), recently sued the State of California alleging grave inadequacies in the provision of basic educational tools to schoolchildren in resource-poor urban and rural school districts. This suit, Williams v. State of California, is not focused on inequities in the distribution of public monies per se. Twenty five years ago the state's highest court ruled that equal distribution of state funds for education was mandated by the education and equal protection clauses of the California constitution. That decision, Serrano v. Priest (1976), inadvertently fueled a race to the bottom, via Proposition 13's tax revolt, where California plummeted from fifth to forty-second in per student funding in the nation. Instead, a principal concern animating the current litigation is the impact of inadequate materials and facilities on student achievement in urban and rural districts with high concentrations of minority students. A related concern is for the stigma students internalize from being provided substandard materials and facilities, much like that animating Brown v. Board of Education. Williams is due to go to trial in 2003, with the ACLU representing a class of two million students and the State of California vigorously defending its current funding scheme.

The contours of a minimally adequate public education are likewise being hotly contested in New York, where that state's highest court will soon decide whether the formula for distributing state tax revenue for public education denies New York City schoolchildren access to a sound basic education. Over 80 percent of New York City students are minorities, comprising nearly 75 percent of the state's minority student population. At an earlier stage in this litigation, Campaign for Fiscal Equity v. State of New York, New York's highest court defined a "sound basic education" as one that enables students to function productively in society as civic participants and employees. On remand, the intermediate appellate court held New York State's funding scheme sufficient to enable New York City to provide a sound basic education, reasoning that an eigth or ninth grade education was all that was required to function productively. This decision is now on review, and the suit may be decided by the summer.

Texas has achieved substantial equity in per student funding since enacting its so-called Robin Hood Law in

*Mary Clark is a Visiting Associate Professor of Law at American University's Washington College of Law. Professor Clark served as Director of the Arthur Liman Public Interest Program at Yale Law School.*

"From California to New York, litigation and other public advocacy has centered on access to the building blocks of a sound basic education."

1993. The gap between the richest and poorest school districts has been reduced to $600 per student since that time - all in a state with severe disparities in household income splintering along racial lines. Relative equality in per student funding was achieved first by barring property tax rates from exceeding $1.50 per $100 of assessed property value throughout the state, and second by mandating that any district's assessed property value above $300,000 be turned over to the state for redistribution to poorer districts. While successful in equalizing per student spending, Texas' Robin Hood Law has met angry opposition from parents and teachers in affluent districts. Those who dissent blame the law for prompting severe cuts in those districts' enrichment programs so as to bring them into parity with less affluent districts. The reaction in Texas mirrors that in New Jersey following the New Jersey Supreme Court's ruling in Abbott v. Burke (1990) that per student spending must be equalized between the state's rich and poor districts. Then-Governor Jim Florio raised taxes to implement the court's decision and was soundly defeated in his bid for re-election thereafter.

Reacting to the strong opposition engendered by funding equity mandates, some advocates of redistribution of public monies for education have embraced the "tools of a sound basic education" paradigm (as reflected in the current litigation in California and New York) as a more effective strategy for pursuing educational equity than an explicit focus on per student funding (as in Texas and New Jersey).

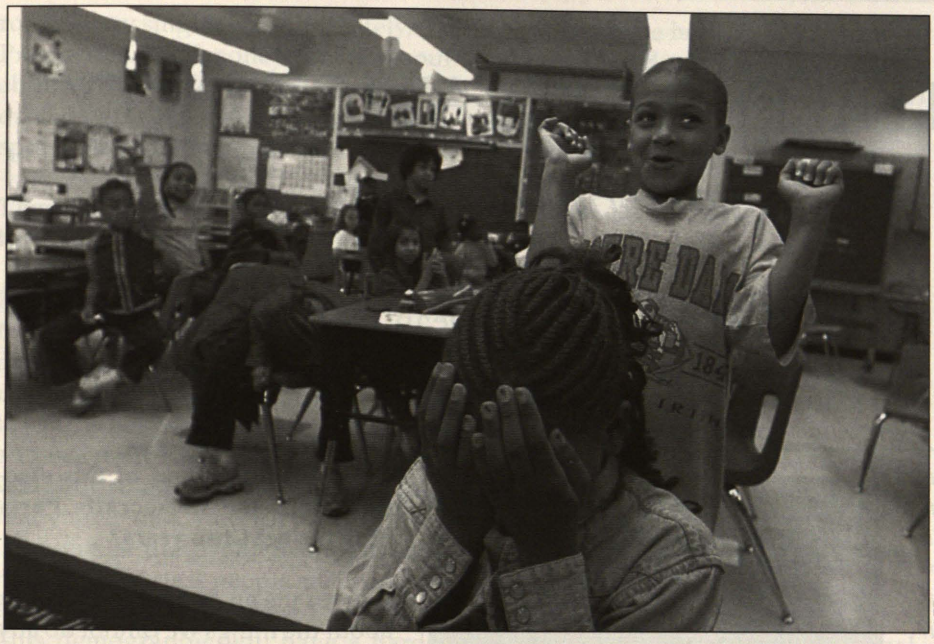
**Equality of Access to Vo-Tech Programs**

Another issue with strong implications for race, class, and sex, is equality of access to vocational-technical ("vo-tech") programs in public secondary schools. The National Women's Law Center (NWLC) recently documented a nationwide pattern of sex segregation in vo-tech schools, where girls constitute the overwhelming majority of students in programs providing training for traditionally female, low-paying jobs and are virtually absent from programs providing training for traditionally male, well-paying trades. According to NWLC statistics, four of the eighteen vo-tech schools in New York City are more than 70 percent female, while nine are more than 70 percent male. Nationwide, 96 percent of cosmetology students at vo-tech schools are female, as are 87 percent of those in childcare courses and 86 percent of those in medical assistance programs. By contrast, 90 percent of students in vo-tech programs related to carpentry, automotive repair, and plumbing are male.

This sex segregation in vo-tech programs is exactly the type of discrimination that Title IX of the 1972 Education Amendments was enacted to combat 30 years ago. By replicating traditional sex stereotypes and reinforcing them with disparate access to advanced placement classes in math and science, vo-tech schools perpetuate a historically gendered wage and opportunity gap. This gap has grave implications for the future financial independence of low income girls of color, given the race and class demographics of urban school districts. Accordingly, the National Women's Law Center has filed petitions with the U.S. Education Department demanding enforcement of Title IX's anti-discrimination principles against separate and unequal vo-tech schools.

**The Rise of All-Girls Charter Schools**

Unlike the sex-segregated vo-tech programs that perpetuate gender stereotypes and contribute to inferior employment options for low-income girls of color, recently established all-girls charter schools use a single sex framework to promote the educational opportunities of African American women and Latina girls in particular. The mission of the Young Women's Leadership Charter School of Chicago (opened in 2000), for example, is to train a predominately minority middle and high school-age female population (67 percent African American, 14 percent Latina) for non-traditionally female, well-paid fields of science and technology. This school provides students with college preparatory instruction and one-on-one mentoring through partnerships with the Field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Museum, Ernst and Young accounting firm, and Sun Microsystems, among others. Likewise, the East Harlem Young Women's Leadership School (established in 1996) offers low-income minority girls a college preparatory curriculum, including advanced classes in math and science, small class sizes, and an emphasis on mentoring by teachers. To date, the East Harlem school has a nearly perfect record of sending its graduates to four-year colleges and universities. Contrasting a recent Bush administration policy directive encouraging the creation of single sex schools and classrooms, intended in part to discourage student sexual activity, the Chicago and East Harlem all-girls charter schools seek to combat sex, race, and class stereotypes and ensure equality of opportunity.

**Policy Implications**

Providing the tools of a "sound basic education," guaranteeing equal access to vo-tech programs, and supporting all-girls charter schools focused on equality of opportunity for African American and Latina girls are but three of the important issues in urban public education reform today. Of course, fundamental to almost any education reform, whether in the urban setting or otherwise, is a commitment to increased spending. While voters showed strong support for education reform measures in the 2002 elections — passing referenda in Florida to cap class size and in California to provide tutoring and after school programs — these measures were not backed by increases in state education funding. The fear, naturally, is that these new measures will drain financial support from other education initiatives. Without the public and political will to increase state and federal funding for education — through tax increases and/or reductions in spending on non-education related programs — few reforms are possible (though compliance with Title IX's anti-discrimination principles in the vo-tech programs is arguably cost-free).

One effort to fill the gap is the recent expansion in educational philanthropy directed at public schools — taking the form of both cash and in-kind gifts to support after school programs and increased computerization, to name but a few. This type of giving is so important to the New York City public schools, for instance, that the new Schools Chancellor, Joel Klein, has appointed Caroline Kennedy, daughter of the former president, chief fundraiser for the City's schools. The generosity of private donors, however, will not erase the need for greater public commitment to addressing the problems of urban education. ♦

**"While voters showed strong support for education reform measures in the 2002 elections... these measures were not backed by increases in state educational spending."**

# SAVING THE DEMOCRATIC PARTY

## *The Race for 2004*

### An Interview with Howard Dean

*Governor Howard Dean has served as Vermont's governor since 1991. The longest serving Democratic governor in the nation, Dean chose not to run for reelection in order to pursue the Democratic nomination for the 2004 presidential election. A 1971 graduate of Yale University, he received his medical degree from Albert Einstein College of Medicine in New York City in 1978. On November 8, 2002, he sat down with* The Politic *at the Yale Club of New York City.*

**The Politic: On November 5, the Democratic Party failed to gain control of the House, and lost control in the Senate. Does this represent a failure by the Democrats to deliver a message to the American people?**

Howard Dean: Yes. Of course we should give full credit to the President and Karl Rove for designing a political strategy based around the Iraqi situation, but the Democrats must realize that we cannot win the White House by being a second Republican Party; it is just not going to work. There are so many Democrats in Washington who have supported the President's education bill, and it has been a disaster for the American public school system. They have voted for the tax cuts even though they have precluded doing things like prescription benefits for Medicare. We need to differentiate ourselves. We have an agenda that we can be proud of, and it includes fiscal responsibility. A Republican president has not balanced the budget in 34 years, and we have an advantage there if we sell it. We support health insurance for all Americans and mean it, and we have a system that explains how it can be done. We support investment in education and early childhood. Those are core Democratic values and we have to stick to our core message and not be co-opted by the President's message.

**How will the fallout of this election shape the Democratic Party over the next two years?**

It gives me an opportunity to talk about the things we cannot do any more, and demonstrates why I believe that somebody from outside of Washington has to be the next president.

**You have been a strong critic of deficit spending. If elected, how would you achieve your policy goals without compromising your commitment to a balanced budget?**

If you eliminated the President's tax cut, you would have an opportunity to balance the budget, the ability to fully fund special education, and the ability to make sure that every man, woman, and child in America has health insurance. The President's tax cut was twice the size of the program that is required to make sure everybody has health insurance. That is how enormous that tax cut was. Now the President's agenda is to make the tax cut permanent. This is completely fiscally irresponsible. The President's economic policy is very similar to Argentina's economic policy, which is borrow and spend, borrow and spend, and borrow and spend. It is unacceptable.

**Do you think the American people will support the repeal of the tax cut?**

If you ask the people to support the repeal of the tax cut, they will say no. But if you give the American people a choice—the choice between a tax cut and a pharmacy benefit, the choice between a tax cut and decent schools, the choice between a tax cut and decent roads—I think they are going to choose health care, education, and

roads every single time. Ultimately, the President's fiscal policy threatens our ability to defend ourselves—we cannot even pay for the military with his irresponsible economic plan.

**Thus far, the Democrats don't seem to have made that argument. Why not?**

Because from inside the beltway, they feel overly threatened by the right wing and their polling numbers. We cannot run this party based on polls. We have to run this party based on principles and use political campaigns not just to win, but to educate people about the real values that America has.

Here is the problem in America: most middle-class people are losing the ability to pursue the American dream. This demographic will have a harder time sending their kids to college than middle class people of my parent's generation. That is wrong, and that dream is being destroyed by the President's economic policies.

**The sweeping health care initiatives you enacted in Vermont are considered to be among your best policy accomplishments. How could such a health plan be scaled up to a national level?**

It is very simple: we do not do any major reforms, we simply include everybody. What we did in Vermont was to expand Medicaid to include all kids under 18, and what I want to do at the federal level is to expand Medicaid to include all kids under 23. I want to have a decent prescription drugs benefit for Medicare, and then for people between the ages of 23 and 65 use the existing system that we already have: employer-based health insurance. I simply want to use federal money to subsidize small businesses so they can buy health insurance for their employees, use federal money to subsidize people who work for themselves but don't make enough to write an $8000 check, and use federal money to subsidize people who work for large corporations and don't get health insurance.

**Given Clinton's failure to deliver comprehensive health care reforms despite Democratic control of both Houses, are such goals realistically tenable?**

They should be because my health insurance plan doesn't require massive reform, or massive change. Americans are conservative with a small "c." They like change, but they don't want too much of it.

Under the system I advocate, not one person in America would have to change her health insurance if she didn't want to. If you want to keep private insurance, be my guest. The system that I'm advocating simply expands the three ways of financing healthcare that we already have: Medicaid—up to 23; Medicare—add a prescription benefit; and employer-based healthcare. There is no big change that everybody is going to struggle to understand, and there is going to be no issue about whether you can choose your own doctor or whether the quality is going to be any good or not. All we are doing is expanding this system to include everybody.

One more point. For the most part, the interests groups in Washington are going to support my plan. The drug companies won't like it, but the National Federation of Independent Businesses should support it, because many of their members will get help. The hospitals, the doctors, and the insurance companies will get more customers and more work for themselves. So most of the interest groups will support it—you cannot take every interest group on in Congress at the same time. If you do, you may feel good about it, but you won't get anything done.

**Earlier you criticized the No Child Left Behind Act, the education bill that recently passed with bipartisan support. What is your plan for education?**

We should do what we did in Vermont. We have very high standards - so high that none of our schools meet all of our standards. We want that. Then you identify the schools publicly, so there's accountability at the local level, but instead of having all the federal mandates, you simply support the schools to improve them. The President's philosophy is that we ought to go after the five percent of the schools that aren't doing what they should be doing. My philosophy is we ought to support the

**"The Democrats cannot win the White House by being a second Republican Party."**

95 percent of the schools whose parents, teachers, and principals want to do the right thing. I think that the mandates and the punitiveness have led, for example, to the state of Ohio reducing its standards so that fewer schools will end up on the "failing school list," or whatever the actual euphemism is. We're seeing states drop their standards to avoid the punitive aspects of the Bush education bill.

"The President's economic policy is very similar to Argentina's economic policy."

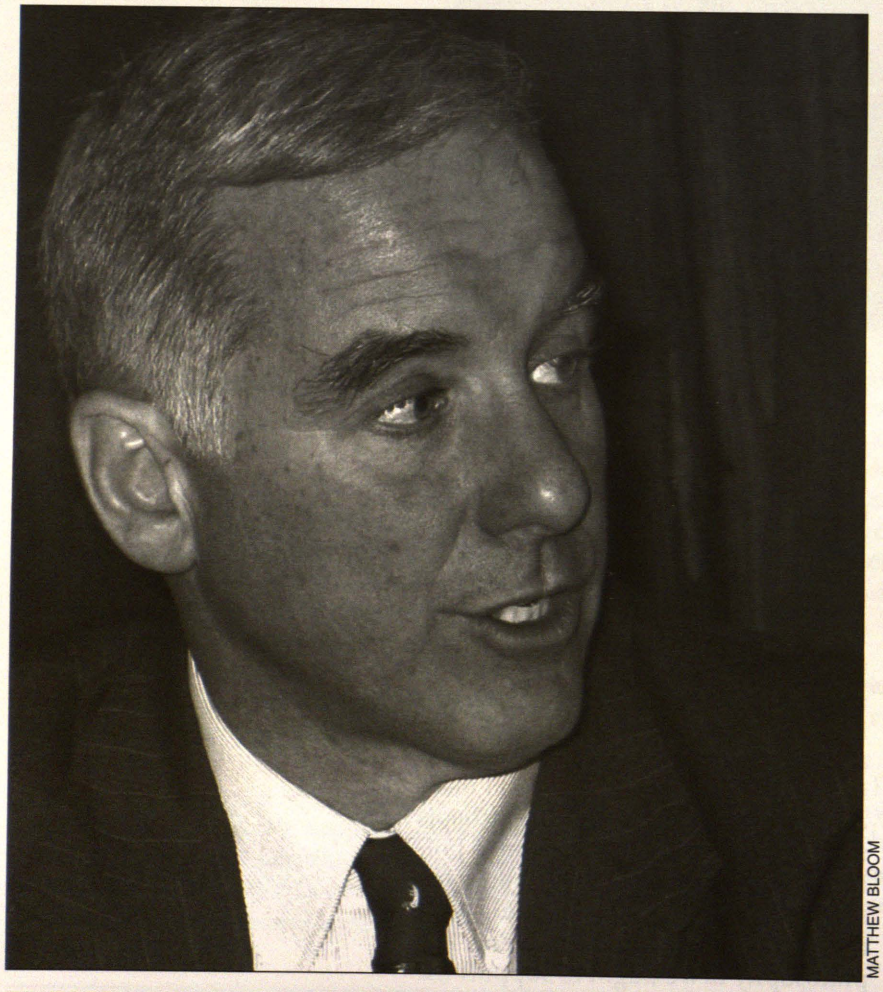
We ought to fully fund special education; that lack of funding is the biggest problem school boards have. Furthermore, we should educate teachers and supply them with enough resources so that schools that aren't doing what they should be doing can improve. Nobody wants to have the worst schools in the country, believe me—so simply publishing those results every year and having high testing standards is good enough to get improvement if we are willing to support the improvement. What the President has done is give us a federal mandate and no money—a huge unfounded mandate that is going to crush every property-tax payer in this country.

Finally, I should point out that the President and the Republicans are very politically agile. When I was in New Hampshire, Republicans and Democrats alike were starting to trash that bill because they understood how bad it was for local schools. Before the 2004 election, the Republicans will gut their own bill.

**You're a big proponent of developing a renewable energy policy. What are the failings of the President on this issue, and what would your strategy be if elected?**

The President has no energy policy of any kind other than drill, drill, and drill. If you simply applied the same mileage standards to SUVs and trucks as you do to the rest of the fleet, you could save the entire amount of oil that's purported to be in the Arctic national wildlife refuge in one year. We shouldn't even debate about drilling in the national wildlife refuge, because it fundamentally won't do any good. Even if you drilled and found all that oil, you'd use it in a year, because no conservation of any kind is being done by this administration.

We haven't even gotten to the environmental benefits of the national energy policy—we ought to do it for defense reasons. Our oil money was used to blow up the World Trade Center, in the sense that we send the money to the Saudis, the Saudis buy off the radical Islamists by getting them out of the country and funding madrassas, and the madrassas teach people to hate Americans, Christians, and Jews. These madrassas are recruiting grounds for al-Qaeda. What we're doing doesn't make any sense from a foreign policy point of view or an environmental policy point of view.



MATTHEW BLOOM

**The Bush administration has been the subject of much international scorn for abandoning multilateralism. Should the U.S. go it alone, even if we believe that it is the right course?**

The fault of the President's foreign policy is that he is setting us up for fail-

ure 30 or 40 years from now. Right now, we have the strength to do anything we want unilaterally. It is a terrible mistake to use that strength except in national defense, because it's not necessary for us to use it. We are sowing the seeds of a phenomenon called encirclement, where historically, when you have one very strong international power, the secondary powers find ways to encircle them either militarily or economically. Like most of the President's economic and foreign policy, it's calculated to win reelection, but there's no long-term benefit for the United States, and there's considerable long-term danger.

We need to build multilateral agreements and confidence, because we are going to need people to work with. I'll give you an example: the Germans. Our position on the Germans right now is laughable—I call it "foreign policy by petulance." The Germans disagreed fundamentally with us in Iraq—that's their right. For us to refuse to shake the hand of the Prime Minister and not invite the Foreign Minister to the White House is silly because in the long run we need the Germans. We need the Germans to help us secure Afghanistan, we need the Germans in Bosnia, we're going to need the Germans to help us clean up Iraq if we go in there.

The Administration is so shortsighted about many of the things that it does, both foreign and domestic, that in the end, we're going to be hurt. Thirty or forty years from now, if the President's policies continue, this country could be a secondary power, both economically and militarily.

We need this country to be strong, and it won't be under the President's policies.

**Do you think the U.N. resolution passed on November 8 will prevent a war in Iraq?**

I don't know; that is up to Saddam Hussein. We may have to go in unilaterally, and we would be justified in doing so if we can't get rid him of his ability to make atomic weapons.

I feel very strongly that we cannot allow countries like North Korea or Iraq to possess atomic weapons, but I think the method of removing these atomic weapons is the principal difference I have with the administration's foreign policy.

**If you succeed in your quest for the Presidency and inherit a post-war Iraq, you will be confronted with building a nation where you have proposed a "ten-year commitment." How will this affect the goal of a balanced budget?**

It'll be very difficult, and we have to pay for that in some way. Fortunately, Iraq has an enormous number of resources—we can use their own oil to reconstruct them. So, in the case of nation-building in Iraq, it probably won't result in a major budget deficit. But, certainly, our involvement in Afghanistan will create a lot of tension with the budget, and we need to deal with that. We cannot continue to run the kind of deficits that we have been, because in the long run we are going to be crippled economically and militarily.

**How do you evaluate Bush's post-war commitment to Afghanistan?**

I haven't heard of any. For the President and Secretary [Donald] Rumsfeld to avoid discussing or making any commitment to policing the periphery shows that they are not serious about reconstructing Afghanistan. That's why we need the Europeans and that's why we shouldn't be so eager to stride up to them with our chests struck out and tell them we're going to do what we darn well please whether they like it or not. We need their help.

**There are clearly a number of challenges for your campaign, the most significant of which are the lack of name recognition and funding. How will you overcome these challenges?**

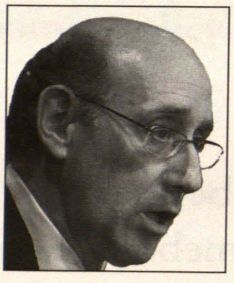
We're starting the fundraising operation now—putting the building blocks in place—and I've been to Iowa 14 times and New Hampshire 15 times already and I'm about to make my fifth visit to South Carolina. These are the early states where I have to do well. ♦

"I believe that somebody from outside of Washington has to be the next President."

# COMPENSATING THE VICTIMS OF 9/11

## *An Unprecedented Public Response*

by Kenneth Feinberg



Within weeks following the September 11 terrorist attacks, Congress and the Bush administration established an unprecedented public compensation program to make substantial payments, both to the surviving families that lost loved ones and to those physically injured as a result of the tragedy. Enacted as part of the "Air Transportation Safety and System Stabilization Act," a federal law aimed at keeping the airlines in business by avoiding bankruptcy, Title IV of the new law created a "Victim Compensation" program which permits eligible claimants to opt into a no-fault administrative compensation system and be paid tax-free amounts which will likely average almost $2 million per claim. In return, such claimants forgo their right to litigate against the airlines, airport security services, the World Trade Center, the federal government and any other individuals or entities, other than the terrorists themselves. The program is unprecedented in its nature and scope and raises for the first time in American history profound public policy questions concerning the appropriate responsibility of our government to its citizens when such a tragedy occurs.

So far, some 800 families and physically injured individuals have applied for compensation pursuant to the program. It is estimated that the total universe of claims will approximate 3300 dead and injured. The program has a statutory expiration date of December 20, 2003, and I estimate that by that time as many as 90 percent of those eligible will participate in the program.

Is the new statute — enacted into law within weeks following the September 11 attacks — a good idea? Is it a compassionate, appropriate reaction to the grief and financial disruption confronting some 3000 surviving families and physically injured individuals? Or, to the contrary, is it an unfortunate precedent which will establish a marker for future disasters (terrorist related or otherwise), in which innocent victims of past and future terrorist attacks, as well as blameless victims of natural disasters and other accidents, will also expect and seek similar compensation? Indeed, even if the statute constitutes sound public policy, and can be justified by the unique historical circumstances of September 11, did Congress act wisely in requiring that eligible claimants be paid different amounts, based upon their own individual economic circumstances? Or would Congress have been wiser by requiring that all eligible claimants be paid the same amount? These questions lie at the heart of the debate surrounding the new program.

In analyzing the objectives and goals underlying the program, several arguments can be advanced in support of the precedent. First, September 11 does constitute a unique event in American history: a terrorist attack on American soil. In terms of the scope and intensity of the tragedy, it is rivaled only by the American Civil War, Pearl Harbor and the Kennedy assassination. It is different even from the horror of Oklahoma City and the first World Trade Center terrorist bombing in 1993. In this sense, an argument can be made that the public's response in establishing a compensation program does not set a precedent for future disasters impacting blameless victims. Instead, it is a unique and compassionate response to a horrible chapter in American history.

Second, the Act was created in conjunction with a federal effort to prevent airline bankruptcy and make sure that the economic, social and political infrastructure of the nation would not be further damaged by terrorist success. Congress, in its wisdom, concluded that the government must act to demonstrate its resolve. The compensation program, there-

*Kenneth Feinberg is the Justice Department-appointed Special Master in charge of allocating the September 11 Victim Compensation Fund.*

fore, was part and parcel of a more comprehensive government response to the disaster. A no-fault administrative compensation scheme constituted the tradeoff for discouraging protracted, costly and potentially devastating civil lawsuits against the airlines, the World Trade Center and other possible litigation targets. Under this argument, it is not compassion that drives the creation of the program but rather a Machiavellian determination to substitute one compensation scheme for another.

Third, a strong argument can be made that the new compensation system guarantees prompt payment to eligible claimants who would otherwise be unable to win their lawsuits by demonstrating negligence on the part of the airlines and others. In other words, prompt tax-free compensation is to be provided to individuals and family members who would otherwise fail in their litigation efforts.

Whether these arguments provide a convincing public policy distinction that sets September 11 apart from other natural or man-made disasters is subject to debate. In any event, the September 11 Victim Compensation Fund is the law of the land.

A second fundamental question must be considered in the debate. Even if the compensation program constitutes sound public policy, was Congress correct in requiring that individual payments to eligible claimants be based on economic differences? As a general rule, should the waiter, the janitor and the busboy receive less under the program than the stockbroker and the bond trader? The statute is clear on this point. Computations require that the administrator of the program take into account individual financial circumstances, computing awards that reflect economic differences among claimants. Again, the battle lines are drawn.

Proponents of the statute point out that financial wherewithal is an important consideration in all government entitlement programs. The most time-honored and credible entitlement program, Social Security, reflects financial difference among recipients. So does Medicare. Why should the 9/11 Fund be any different? These advocates also argue that, since the program is designed as a substitute for our civil litigation system, economic distinctions must play a role in computing awards, just as they would in the courtroom. Finally, supporters of the statute make a common sense argument, the awards, to be truly meaningful and helpful to claimants, must take into account their respective financial circumstances. Otherwise, what is the point in asserting that the compensation scheme will provide meaningful payments to families in need?

Critics do not agree. They propose that all life is precious, and that one life is not worth more than another. They point to other no-fault administrative schemes, such as workers' compensation, that pay the same awards for the same injuries. The laborer who loses an arm in an industrial accident is awarded the same workers' compensation as the piano player who suffers the same misfortune on the job. Critics also argue that basing public compensation on financial distinctions among claimants promotes divisiveness and a type of class warfare. Emotions that are already raw because of September 11 are fueled when a government program says, in effect, that one life is worth more than another. Finally, these same critics warn that the administrative necessity of computing economic loss, and predicting what the victim might have earned in the future, guarantees delay in administering the program. The inherently speculative nature of computing future lost income will require the type of deliberation that will undercut prompt payment to victims and their families.

There are, of course, no easy answers to these two issues concerning the wisdom of the program itself and the methodology for computing appropriate compensation to claimants. What is clear is that Congress has spoken, the law is currently being implemented, and compensation is being paid. The debate will continue. What is important is that the program be administered in a manner that promotes the perception — particularly among the families and victims themselves — that each claimant is being treated in a fair and just fashion. Consistency in the application of the statute and accompanying rules and regulations is a critical component in achieving this end. The statute is an unprecedented response to an unprecedented tragedy. How the program is implemented will go a long way in defining how we as Americans reacted to September 11, and how we met our obligations to our fellow citizens.♦

"Should the waiter, the janitor and the busboy receive less under the program than the stockbroker and the bond trader?"

# POLITICS OF CORPORATE MISDEED

## *A Historical Examination of Corporate Corruption*

by Matthew Bloom

The connection between Republicans and big business is no secret to American voters. In a period of increased attention to corporate mischief, Democrats sensed a propitious opportunity to capitalize on this link leading up to the 2002 midterm elections. House Minority Leader Dick Gephardt was the main strategist in the party's campaign to paint Congressional Republicans as clement regulators of corporate greed. As far back as June, the Washington Post reported that "Gephardt [had] privately instructed top Democrats, particularly those on the House Appropriations Committee, to use the legislative process to force votes that will emphasize this new political theme [of corporate responsibility]."

In the aftermath of the Democratic election debacle, Gephardt and Senate Majority Leader Tom Daschle are receiving the brunt of the criticism from political pundits. Why were the Democrats unable to capitalize on the debauched atmosphere that accompanied the sinking economy? Can the lack of a party line regarding new regulations in the wake of high-profile corporate scandals simply be chalked up to the Bush administration's insistence on focusing the nation's attention on a potential war with Iraq? Or is there an inveterate fault in making the critique of corporate greed a main election theme? A look at the current environment on Wall Street, as well as a historical inquiry into corruption scandals in contemporary American economic history, may shed light on such pertinent political questions.

The news media has portrayed corporate scandals involving Enron, ImClone, Tyco and others as unique to this time period. MSNBC's Chris Matthews says he has never seen so much coverage of corporate corruption. This phenomenon is not unique to the post-1990s boom period, however; according to Burton Malkiel in *A Random Walk Down Wall Street* (1998), "Greed run amok has been an essential feature of every spectacular boom in history." Over the years, novel attempts at government regulation have followed scandals. As Richard Sylla, a professor of economics at the Stern School of Business at New York University, suggests, "It's when things aren't going well, it's then that we look for scapegoats and think that the government should have prevented all this from happening in the first place."

Yet history has shown that the subsequent blame game does not single out any one political party. In fact, according to Sylla, voters have tended to brush off financial scandals unless their own self-interest is involved. Could the political history of corporate regulation have taught the Democrats a lesson prior to this year's election? While political scientists criticize such ideographic examinations as insufficient for offering universal explanations for political phenomena, one will notice a discernible trend in a historical examination of past attempts at regulations and the ensuing political climates.

Greed has always existed; it is a human weakness that is as old as the species itself. Nevertheless, unseemly business activity tends to be more pronounced during times of prodigious economic growth and technological innovation. Periods of advancement, as Sylla recounts, have opened the door to wrongdoing "by people who [had] legitimate ideas initially but then went too far."

Take, for instance, the high-rolling Gatsby years of the 1920s. Investor excitement was fueled by economic growth due in part to the burgeoning electric utility industry, led by the tycoon Samuel Insull. This oft-forgotten business maverick later came to symbolize corruption; the parallels to Ken-

*Matthew Bloom is a sophomore in Calhoun College at Yale University. He is the National Editor of* The Politic.

neth Lay are eerie. Insull built a vast empire by fashioning a new innovation - the utility holding company.

According to Brian Trumbore, President of StockandNews.com, Insull quickly realized that competition in the fractured, regional electric power supply business "would never allow him to exploit the large turbine-generators and AC transmission systems, so he looked to consolidation." During the economic boom of the 1920s, Insull pyramided one sub-holding company on top of another, none of which did anything but hold securities of the companies below it. The scheme allowed stockholders of the top companies to control the assets of operating companies with very little actual investment.

After the stock market crash of 1929, newspapers accounted abuses by the holding companies, leading to a six-year investigation by the Federal Trade Commission. Facing an indictment, Insull fled the country. The regulatory repercussions that followed were responsible for a significant amount of political fallout.

President Roosevelt "had the opportunity to transform forever the utility industry," according to Trumbore. "With public and political support behind him after the holding company abuses became widely known, he could have urged that state and federal power agencies assume the assets and activities of privately owned utility companies." Instead, Roosevelt sought to fill gaps created by the private market and impose safeguards in the form of government oversight of holding companies and securities issuance in order to prevent future abuses.

The legislative consequence of the corporate abuses of the 1920s manifested itself in the 1935 Holding Company Act. This act, as reported by the Securities and Exchange Commission, granted "power to the U.S. Securities and Exchange Commission (SEC) to outlaw large holding companies which might otherwise control the provision of electrical service to large regions of the country. It [gave] the SEC power to approve or deny mergers and acquisitions and, if necessary, force utility companies to dispose of assets or change business practices if the company's structure or activities [were] not deemed to be in the public interest."

The federal government was criticized for not going far enough. Roosevelt was a political moderate, and was concerned primarily with preserving the system of private capital. Public sentiment was undoubtedly preoccupied with the Great Depression and later with World War II; as a result, Roosevelt remained largely unscathed politically for his soft regulations.

Additional public scandals occurred during the 1930s, a decade that witnessed more instances of corporate abuse than in most other periods of contemporary American history. Richard Whitney, for example, a prominent member of the New York Stock Exchange, pleaded guilty to embezzlement. His conviction resulted in further legislative reform.

AFP

*Paul Sarbanes and Dick Gephardt talk to the press about the Sarbanes Corporate Fraud Bill.*

The Insull case portends the history of scandals throughout the rest of the century. It outlines the reluctance of politicians to regulate big business and their hesitancy to avoid losing campaign financing from wealthy donors. At the same time, these politicians fail to capitalize politically on the public distrust of corporations. The period preceding the Great Depression makes for a pertinent case study of the prevalence of corporate greed during economic boom years, and of the subsequent pressure for new regulations after markets collapse and economic growth subsides.

In order to understand instances of corporate abuse, and whether they in fact become more prominent during boom times, one must look at all periods to avoid selecting biased cases. The 1940s through 1960s were relatively free of major financial scandals, as the economic conditions would suggest. The American economy

**"Greed has always existed; it is a human weakness that is as old as the species itself."**

entered the 1960s in the wake of numerous recessions. Paul Argenti, a professor at Dartmouth's Tuck School of Business, suggests that "there's a lull because of the Depression, which had kind of an equalizing effect."

The late 1960s began a wartime boom, however, that led to a steadily strong growth in GDP, a decline in unemployment, and a stability in prices. This boom carried a strong economy into the early 1970s, until supply shocks from rising oil prices, turmoil in foreign exchange markets, and massive speculation on world commodities markets pushed prices upward. A drop in output followed in the late 1970s, and by 1979 Federal Reserve Chairman Paul Volcker instituted a period of tight money to remedy the situation.

High-profile corruption cases followed soon thereafter. In 1986, the SEC announced that Ivan Boesky, who had engaged in a risky type of speculation called arbitrage, agreed to pay back $100 million and pleaded guilty to insider-trading violations. Michael Milken, the head of the junk-bond operation at Drexel Burnham Lambert, Inc., was implicated in the same case and sentenced to 10 years in prison.

The 1980s also witnessed the collapse of several savings-and-loan associations. Charles Keating, Jr. was convicted for bank fraud. Numerous other cases of fraud were exposed during the 1980s, leading CNN's Moneyline to call it the decade in which "Wall Street scandal [came] of age."

The government was again slow to make sweeping changes to regulatory processes, until it passed the National Securities Markets Improvement Act of 1996. This legislation altered regulations dating from the 1930s – the previous period of corporate scandal. The act impacted state broker dealer and investment adviser licensing provisions. Once again, public sentiment was preoccupied: this time in the early stages of a period characterized by "irrational exuberance," as Federal Reserve Chairman Alan Greenspan described it. As a result, the politics of corporate scandal and subsequent regulation was not a major campaign issue in the 1996 election.

The recent scandals in big business are not new to American economic history. In fact, given the historical background, one can almost anticipate the revelation of corporate greed following economic booms. Only when such booms end does the nation pay attention to what actually occurs during those expansionary periods.

Corporate scandals have been commonplace throughout history, but politicians have never been able to use the regulation of corporate greed as a major issue to mobilize the electorate. Perhaps tangentially related, regulations have often been viewed as being too soft, and have not had an impact on the statistically significant jump in high-profile scandals that follow economic booms.

Democrats, who attempted to blame the GOP for corporate greed with Gephardt at the helm, could have learned from past history. Corporate greed has never proven a viable campaign issue. Even when they garner as much press as this last wave, the electorate either fails to link greed to one particular party, or, as history would suggest, simply does not care enough to make corporate regulation a deciding issue.

If one is to uncover any valuable conclusion regarding the psychology behind public sentiment towards corporate greed, large scale survey research is necessary. In terms of a series of historical case studies, however, one would uncover analytically significant periods of corporate greed that lead to unsatisfactory regulations.

Numerous assumptions exist to explain the failure of the government to regulate corporate corruption. Government regulation of a market economy is detrimental to achieving maximum economic growth, and the goal of long-term monetary policy is to achieve such growth. Cynics might suggest that both political parties receive campaign donations from big business, and subsequently choose not to impose harsh regulations.

If the government wants to learn from history, it must begin to impose tougher corporate regulations. Alan Ackerman, the senior vice president of Fahnestock & Co. in New York, claims that "Enron's quick collapse touched off more aggressiveness by regulators and prompted them to dig more deeply into executive dealings." Yet, given the Democrats' inability to capitalize on corporate misdeeds in the recent midterm election, the nation's focus is already shifting away from harsher regulatory measures. The recently passed Sarbanes-Oxley bill is a step in the right direction, but does not do enough to prevent future corruption. If history is any indication, lawmakers should learn from the past and institute harsher regulations. ♦

"The government must begin to impose tougher corporate regulations."

# Attention!!!
# Attention!!!

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# THE CHALLENGES OF GLOBALIZATION

## *International Security, the United Nations, and U.S. Foreign Policy*

### An Interview with Ernesto Zedillo

*Ernesto Zedillo, who has headed the Yale Center for the Study of Globalization since September 2002, previously served as the President of Mexico from 1994 to 2000. Upon his 1994 election, Zedillo earned international renown for orchestrating Mexico's first peaceful transfer of power following 71 years of uninterrupted rule by a single political party. As president, Zedillo was also credited with strengthening democratic institutions in Mexico, reforming the domestic economy, promoting political stability and expanding Mexico's ties to countries around the world. A 1972 graduate of Mexico's Instituto Politécnico Nacional, Zedillo went on to earn two Master's degrees and a Ph.D. in economics at Yale. On November 13, President Zedillo spoke with* The Politic.

DAVID WHITE

**The Politic: Has worldwide political cooperation kept pace with economic integration and globalization?**

Ernesto Zedillo: No. I think there is a significant mismatch between the degree of integration that the world has achieved and the degree of international cooperation that we currently have. The global government institutions that were built right after World War II have worked very well for many years. But the world has changed, and it's evident that there is a deficiency in global governance that can only be filled if we aim to offer institutions of multilateral and international cooperation.

**How do humanitarian economic development systems play a role in the maintenance of international security?**

They have a role to play to the extent that they can be one of several instruments that may support development in the poorest and most backward regions of the world. If that is the case, perhaps terrorists will be less capable of recruiting people who are willing to carry out terrorist attacks. A world in which there are more opportunities, less poverty and less inequity is going to be a safer world for everybody. It is also going to be a more prosperous world for the rich countries, because if the incomes of two countries increase, the size of the market for rich countries also increases. It is a win-win situation with a security component that cannot and should not be ignored.

**How would you evaluate the current and future role of the United Nations in the maintenance of international security?**

The United Nations should be a central instrument offering international security and viable international statutes. We have recently seen very clear proof of the security component. Any U.S. strategy seeking to deal with the Iraqi program without U.N. participation would be out of place. It was a big risk when the U.S. announced two months ago that it would go it alone in dealing with the Iraq question. The Bush administration, fortunately, changed this attitude and position by going to the U.N. and the Security Council. We are now seeing international cooperation in dealing with the Iraq question, and I think that the strategy now is much more likely to be successful than the unilateral strategy that the American government entertained a month ago. The U.N. should be involved in all security problems of global relevance; the Iraq question is but one example of that.

**How significant was the decision of the United States to work through the United Nations, and how will this affect the war on terror?**

I think the decision of the United States was a change

for the better. There were two important changes in the policies that were being advanced by the American administration as recently as July. The first change was the decision to pursue an authorization of the use of force in the Iraq situation from the U.S. Congress in case it was needed. The second step was to open this issue to the Security Council. We now have a U.S. government strategy legitimated domestically by virtue of the participation of the U.S. Congress on the one hand, and internationally by way of the Security Council on the other. I think the moral, practical and legal position of the American government has taken a significant step, which it hadn't taken before.

**In light of the recent resolution on Iraq, how should the United Nations treat North Korea?**

The issue must first be brought to the U.N. The U.N., you must understand, is not an entity in and of itself; it is only what the member states decide it will be. People in this country and others sometimes speak about the U.N. as if it were another state in the world, and that's not accurate. The U.N. is simply an association of individual states, some of which (those that participate in the Security Council in particular) have more influence. Sometimes I am skeptical when countries suggest that the U.N. should do this or that, especially when those countries are among the most influential members of the organization. If any of these members want to deal with the North Korea question, and I think the U.N. has very clear legal instruments to do so, there will be an interest in finding diplomatic solutions for this problem, which is a very real problem on a global scale.

**What is your assessment of the new National Security Strategy?**

It is a document that, for the most part, is very interesting and positive. The only element that concerned me significantly is the justification for unilateral action, which I believe to be the wrong view. I don't say this simply from the perspective of a foreigner; even as I make an effort to look for what is in the best interest of the United States, I consider it misguided to conclude that since we are the greatest economic and military power in history, we are capable of dealing with all the problems we face alone. We are bound to live in an interdependent world, and even the most powerful country in the world needs to rely on other nations to solve certain problems whose solutions are important both for this country and others. It is wrong to believe that our sheer power exempts us from dependency on others. This idea is unfortunately instilled into this document. But as I have argued elsewhere and have written briefly about, it so happens that this National Security Strategy document is also a very comprehensive statement for multilateralism. In that way it is a bit contradictory.

**How would you appraise the current relationship between the United States and Mexico?**

U.S.-Mexico relations are going through a difficult period, especially in light of the fact that there were very optimistic expectations about these relations leading up to September 11. A few days before September 11, President Bush told Mexican President Vicente Fox that Mexico was priority number one in American foreign policy. I think that was an overstatement, but it nevertheless reflected a constructive attitude on the part of President Bush towards Mexico. After September 11, Mexico practically disappeared from the American foreign policy agenda. This is unfortunate, and I hope that Mexico and the rest of Latin America acquire more prominence in American foreign policy sooner rather than later. Mexico, and Latin America in general, should be considered more important to the strategic interests of the United States.

**Does the United States have a special obligation to Latin America?**

Latin America is very important to American self-interest. It is the closest market to the U.S. and is vital for naional security. Merely by the yardstick of self-interest, the United States should pay more attention to Mexico

"After September 11, Mexico practically disappeared from the American foreign policy agenda."

"U.S.- Mexico relations are going through a difficult period."

and Latin America. My argument does not rest on any altruistic considerations; rather, simply on the basis of mutual self-interest. It seems evident that the United States and Latin America should walk together more frequently on issues of common interest.

**How would you evaluate the performance of President Fox?**

He has made progress on some fronts, and has not been able to make progress on other fronts, but I believe that if we are going to maintain the democracy that we now have in Mexico, we should not expect the President to be responsible for everything that has to be done. Some people criticize me for emphasizing this but the other branches of the Mexican government must also take responsibility; political parties and citizens have important roles to play. I just hope that economic, social and political changes continue in Mexico. Right now I think it's a very slow process, and I know that President Fox is the very first to admit that.

**What impact has the North American Free Trade Agreement (NAFTA) had on Mexico?**

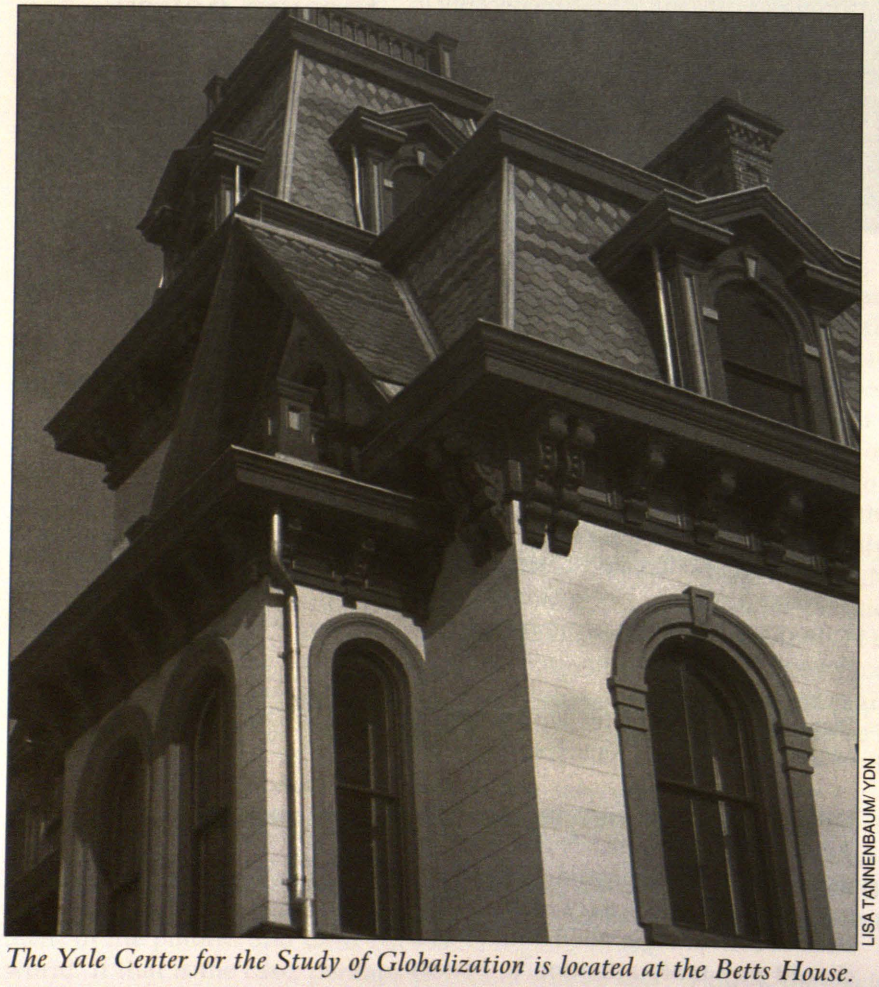
I would say that overall NAFTA has had a highly positive effect. It has certainly helped Mexico economically, and I believe that this economic impact also helps solve many social problems. But, of course, NAFTA is just one of many instruments, and many things must take place before Mexico will be able to overcome all of its economic and social challenges.

**How does your experience as President of Mexico help you to run the Yale Center for the Study of Globalization?**

Running the Globalization Center is a very different experience. It is a beautifully simple organization. I used to run huge and very complex organizations, but I do find that my previous experience is very relevant to this work. Much of my work here deals with problems that I have faced in the past, not only as President, but also as Minister of Education and as the central banker for Mexico. I am very pleased to be able to approach those problems from a more academic perspective.

**In what direction are you hoping to take the Globalization Center?**

I want the center to accomplish its mission, which expressed very simply is to contribute to the study of the several facets of globalization. But fundamentally we want whatever we do to have some policy relevance: in that respect one of the main concerns is promoting the generation and diffusion of ideas to make globalization a more inclusive phenomenon. Globalization has brought prosperity to many millions in the world but there are many others that are not sharing in the opportunities it generates. We believe that this state of affairs can be changed, but we need to have new ideas, we need to have new initiatives and better policies. I think this center will contribute to that. ♦



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# DEGREES OF FREEDOM

## *British Sovereignty and the Euro*

by Tudor Jones

The question of whether the U.K. should participate in the single European currency – the euro – currently remains the most contentious and divisive issue in British politics. For the time being, the Blair Government has shelved its plans for a national referendum on the issue. It states repeatedly that such a test of public opinion – still running predominantly against joining the euro – will only take place after the Government's five economic tests have been met. This rubric includes matters such as convergence, market flexibility, the impact on the financial services sector, inward investment, and growth and employment. Joining the euro is thus depicted by the U.K.'s Labour Government as an essentially technical question to be assessed and determined according to economic criteria.

In reality the issue raises both economic and constitutional questions, which are demonstrably intertwined. As far as the economic part of the case for joining the euro is concerned, advocates of British participation commonly cite as major macroeconomic benefits a future climate of economic stability marked by low inflation and low interest rates. This, they argue, would be accompanied by the possibility of faster economic growth and higher investment.

In addition, the pro-euro camp regularly cites the microeconomic benefits of the efficiency gains arising from elimination of transaction costs for individuals and companies, and of exchange-rate fluctuations.

While such arguments might appear compelling, the macroeconomic benefits cited above remain matters for conjecture among economic forecasters. The alleged microeconomic gains are also questionable. Some economists, for instance, have estimated the potential benefit to the U.K. of eliminating transaction costs as only about 0.2 percent of GDP per annum.

On the other side of the economic debate, meanwhile, arguments against Britain's joining the euro tend to concentrate on the U.K.'s distinctive economic position, as well as on the loss of flexibility of response that European Monetary Union (EMU) entry would entail. In the first place joining the euro and scrapping the pound would involve the loss of domestic control over monetary policy. It would thus preclude the possibility of responding to changing national or international conditions by adjusting the exchange rate and by raising or lowering interest rates.

The potential costs might also include the loss of flexibility in adjusting to external economic shocks. These could affect Britain particularly harshly because of its distinctive economic circumstances. As a significant oil producer, for instance, the U.K. would be highly sensitive to movements in the world price of oil. As a society, too, with an exceptionally high level of private home ownership, the U.K. has a financial structure that includes a large mortgage, and thus mainly variable, interest-debt component. For that reason British householders, and the U.K. economy as a whole, would be highly vulnerable to rising European interest rates.

Arguably, such considerations provide good reasons for Britain's remaining outside the eurozone, allowing the U.K. to tailor monetary policy to its domestic economic conditions. A cautious approach of this kind seems justified by wider doubts about the viability of the EMU project itself. Such doubts center on the problem of constructing a currency union out of disparate national economies – those of France and Portugal, of Germany and Greece. They also focus on the lack of la-

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bor mobility across the eurozone, as well as on the absence of an adequate system of fiscal transfers for redistributing resources from prosperous states to depressed ones within the currency union. In other words, the eurozone hardly appears to be an "optimal currency area" in those respects.

These are the principal arguments deployed on the opposing sides of the economic debate. However, as I have stated, such arguments also have deep-running constitutional implications. The question of control of monetary policy raised by the reality of a currency union is indissolubly linked, for several reasons, to fundamental questions about national sovereignty in this case, to the U.K.'s constitutional independence.

This is evident, first and most obviously, because European economic and monetary union involves the loss of control of a national currency, something widely perceived as a symbol of national identity and autonomy. Historically management of a national currency, and hence control of the money supply, have been regarded as important functions of the nation-state. For these reasons – both symbolic and practical– abolishing the pound would thus entail some loss of national sovereignty.

Second, it is undeniably the case, as the British Treasury has conceded, that the U.K.'s entry into monetary union would involve an unsuitable loss of domestic control over monetary policy. All major decisions concerning the exchange rate, interest rates and the level of borrowing would be made by the European Central Bank rather than by national institutions in the U.K. Currently, such decisions are made by the government-appointed Monetary Policy Committee of the Bank of England. In this important respect, therefore, monetary sovereignty would be undermined.

Third, this loss of national monetary independence involved in joining the single European currency might well lead to a wider loss of economic sovereignty. For all major economic decision-making – concerning not just monetary policy but also fiscal policy decisions about taxes and spending – might eventually take place at a European rather than a national level.

In other words, centralization of monetary policy might in turn lead to harmonization of levels of taxation and public expenditure throughout Europe. The single currency venture would thus be followed by a loss of national fiscal sovereignty and by further extensions of economic integration beyond the monetary sphere. That

**"Economists have estimated the potential benefit to the U.K. of eliminating transaction costs as only about 0.2 percent of GDP per annum."**

"Abolishing the pound would manifestly entail some loss of national sovereignty."

may lead, as the Stability Pact's obligations have indicated, to either the European Commission or possibly a newly-created European finance minister reinforcing the decisions of the European central bank.

Finally, if that were to occur, monetary union would almost certainly give rise to closer political integration in Europe, something which European federalists have long recognized and desired. Former German Chancellor Kohl, for example, often declared that monetary union is a precondition of political union, while Giscard d'Estaing and Helmut Schmidt, the original designers of plans for monetary union in the late 1970s, have stated that "monetary union . . . is ultimately a political union. It aims to give a new impulse to the historic movement towards union of European states."

In spite of the Blair Government's preoccupation with strictly economic criteria for British entry into EMU, there are clearly major constitutional questions raised by this divisive issue. These are ones of democratic urgency not least because they include the matter of public accountability. For the loss of national control over macroeconomic policy entailed in the EMU project would in effect mean transferring powers from Britain's flawed yet democratic institutions to an unaccountable European monetary authority, placed by treaty outside democratic control, and to European political structures which as yet lack political clout or legitimacy.

The constitutional case against Britain's participation in European monetary union thus rests on an interpretation of national sovereignty, not in its anachronistic sense of unfettered national power, but rather in its still meaningful and coherent sense of constitutional independence, and hence of ultimate legal and political authority. That means valuing national sovereignty as the recognized right of an elected British government and Parliament, operating within the constraints and obligations of the international order, to make laws and policy decisions affecting the British people.

These are questions of vital importance not just in political philosophy but also in democratic practice. They will most certainly be raised, along with assessments of the Labour Government's "five economic tests," as the British debate on the euro develops and intensifies. ♦

*Tony Blair talks as Gordon Brown listens during the final national briefings of the European Council.*

# LULA'S CHALLENGE

## *Can a Socialist Save Brazilian Capitalism?*

by George Lyall

On January 1, 2003, Brazil's first elected socialist president will take over South America's largest country and economy. Luiz Inacio Lula da Silva (known as Lula in Brazil) won an overwhelming majority in the runoff election versus the ruling party candidate, Jose Serra. The victory marked the culmination of a rise to power for both Lula and the Workers' Party (PT), the party he has led since its inception in 1980. After three failed attempts at the presidency, Lula finally seized the opportunity provided by the desperate social and economic conditions in Brazil, to a large extent by widening his political vision to appeal to a majority of Brazilians. Softening his radical image and agenda allowed him to win the election; but, as president, he again faces the very problems that paved the way for his victory.

Lula, born the seventh of eight children in the impoverished northwest of Brazil, dropped out of the fifth grade in order to make money by selling peanuts and shining shoes. At the first opportunity, he boarded a train to São Paulo, where he became a metalworker at the age of fifteen. In the weak, pro-government metalworker unions, Lula found his calling, rising through the ranks to become president of the union in 1975. He transformed the nation's largest union into a forum for social struggle against the oppressive military dictatorship. Upon his reelection as union president in 1978, Lula soon gained international prominence as a vocal left-wing fighter for social reform.

In the years preceding the party's official incorporation, Lula voiced the struggles of Brazil's poor and advocated acts of defiance to spread his message. He organized some of the largest general strikes in the nation's history and was subsequently jailed for his leadership. His long beard and shabby dress confirmed his image as a workingman for the workingman. As his international presence grew, world leaders from Fidel Castro to former French Prime Minister Lionel Jospin welcomed Lula. In 1980, under the strain of economic hardship in Brazil, the military leadership legalized political parties, creating a new stage upon which Lula could fight for the poor of Brazil. The PT adopted the socialist motto, "The Party Without Bosses," and with Lula at its helm built a base by bringing together intellectuals, union officials and progressive Catholic Church reformers from the ranks of the Brazilian left.

Lula has run and lost in every free election since the fall of the military dictatorship in 1985, suffering major defeats in 1989, 1994 and 1998. Finally, in October, the Brazilian people took him seriously enough to elect him in two rounds. After three defeats, however, one must ask what has changed: Lula or Brazil? The truth lies somewhere in between.

This shift from previous conservative presidents like Fernando Henrique Cardoso to a leftist like Lula reflects the precarious economic and social conditions in Brazil. From 1994 to 2002, under the presidency of Cardoso, Brazil amassed a $250 billion public debt, nearly two-thirds of its GDP. International investors and the International Monetary Fund (IMF) are worried that Brazil is going to default on the $30 billion loan granted in August aimed at keeping the fledgling Brazilian economy afloat through the elections. Moreover, the incredibly unequal distribution of wealth in Brazil has lead to severe social problems in some of the nation's largest cities.

As Finance Minister in 1994, Cardoso introduced an economic plan that established the real as the national currency, and provided a much needed dose of economic stability. The plan helped build the Brazilian economy into one of the

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| brazil |
| --- |
| **Population:** 176,029,560 (July 2002 est.) |
| **Percentage of population under 15 years old:** 28% |
| **Urban population as a percentage of total population:** 81.2% |
| **GDP per capita:** $7,400 (2000 at purchasing power parity) |
| **Real GDP growth rate:** 1.9% (2001) |
| **Unemployment rate:** 6.4% (2001) |
| **Inflation rate for consumer prices:** 7.7% (2001) |
| **Population below $2 per day:** 26.5% |
| **People living with HIV/AIDS:** 540,000 (1999 est.) |
| **Illiteracy rate:** 14.8% (2000) |
| Sources: (CIA World Factbook), (UN Human Development Report 2002) (Latin-Focus.com) |

"Softening his radical image and agenda allowed Lula to win the election, but he now faces those very problems that paved the way for his victory."

world's major markets. He rode the success of the plan to two consecutive terms as president and increased domestic productivity. The financial markets, however, first attacked the real in 1995 following the Mexican peso devaluation. As president, Cardoso raised interest rates and pegged the exchange rate to stave off inflation. His government, however, was not able to act decisively enough to reform public finances, and high government spending led to increased inflation rates. As an advocate of free trade and laissez-faire capitalism, Cardoso privatized many industries in Brazil and helped reduce illiteracy through limited social programs. The financial situation, which soon spiraled out of Cardoso's control, negated much of the social progress made by his programs.

Cardoso's critics argue, however, that his government squandered many opportunities to devalue the real and stabilize the Brazilian economy in order to keep his reelection hopes alive. Even those close to him have claimed that Cardoso has been economically over-conciliatory in the past four years. The financial instability that returned in the latter years of Cardoso's government is pushing the poor in Brazil to deeper lows and is enriching an elite few. In 1999, the top ten percent of the population held more than half of the nation's wealth, while the bottom half of the population held only 12 percent.

In a country of roughly 175 million inhabitants, almost 35 million live in poverty and millions are classified as destitute. Over ten percent of Brazil's population live on less than US$1 per day; 14 million people are illiterate and one in every 16 children will die before the age of five. Urban poverty is particularly troubling. In São Paulo, the world's third largest city with 18 million people, almost two-thirds of the population lives in poverty. Crime and violence run rampant in the city's *favelas*, or slums, where there are few if any jobs. Many people praise recent social programs, yet Brazil still ranks 73rd on the U.N.'s Human Development Index, which measures social well-being by quantifying longevity, education and standard of living. Violence and corruption continue to plague Brazil, though Lula's victory suggests the new government will pay more attention to righting these social ills.

During the 1980s, Lula and the PT worked to change the social conditions for many Brazilians by advocating radical social practices. The PT abandoned the philosophy of waiting for social change through traditionally bureaucratic means and supported redistribution of wealth by any means possible. On many occasions, the Party supported independent land seizures by the nation's poor and unemployed. The Landless Movement (MST) took over lands that the PT deemed unproductive or unused in order to settle close to 60,000 families of unemployed workers. Aimed at destabilizing Cardoso's government, these land seizures did not come without violence. Furthermore, for many Brazilians, the land seizures gave the PT a radical and anarchistic image. Lula's background as a workingman gave him the credibility needed to stand behind the practices; he maintains a strategic role in ending the seizures to help stabilize the country and soften his image.

The PT is radical, however, in more than its policies. In its evolution and structure, the Workers' Party is transforming party politics in Brazil. The PT is one of the first parties in Brazil's history to actively advocate party loyalty. This may seem strange in comparison to the American two-party system, but in Brazil it is not unusual for a politician to change parties multiple times in his or her career. Brazil has over 21 parties represented in its legislature, and almost half of the politicians elected in 1999 no longer represented their parties by the end of their terms.

Along with the fractured party system in Brazil comes the corruption that is so common in Latin American politics. The PT has tried to introduce "ethical politics" by clamping down on corruption in the areas that they control, but these measures have had harsh consequences. Two PT mayors have been killed, and a group called the Brazilian Revolutionary Action Front has claimed responsibility for one of the murders. Not to be intimidated, the PT publicly considers these killings an example of its dedication to ideals. The party justified its radical actions during the 1980s through this doctrine of ethical politics, saying that the corruption that perpetuated the enormous wealth gap warranted radical measures by the nation's poor. Lula's critics argue, however, that he and the PT denounce the violence that befalls their representatives while advocating land seizures in order to spur social change.

In his last campaign, Lula attempted to silence his critics by making a move toward the center to attract more voters and make a convincing run at office. He trimmed his beard, shed his jeans and donned Italian suits in an attempt to look the part of a credible candidate. Lula chose as his running mate a self-made millionaire from the center-right Liberal Party, Jose Alencar. He also attempted to temper the radical image of the Party by calling for a temporary end to the land seizures. Initially, Lula found support simply by remaining a heavy critic of President Cardoso's economic decisions while leaving his promises vague. As the elections loomed closer, he took many steps to appeal to voters beyond his base. He also looked to quiet international investors by making it clear that he has no intentions to nationalize any major industries and pledging to honor the IMF loan granted in August. He does, however, raise concern among some circles by insisting that the international community cannot expect Brazil to worry about international monetary matters when the poor and jobless of Brazil are starving. He has also proposed social programs that aim at getting the poor out of the *favelas* and increasing domestic production.

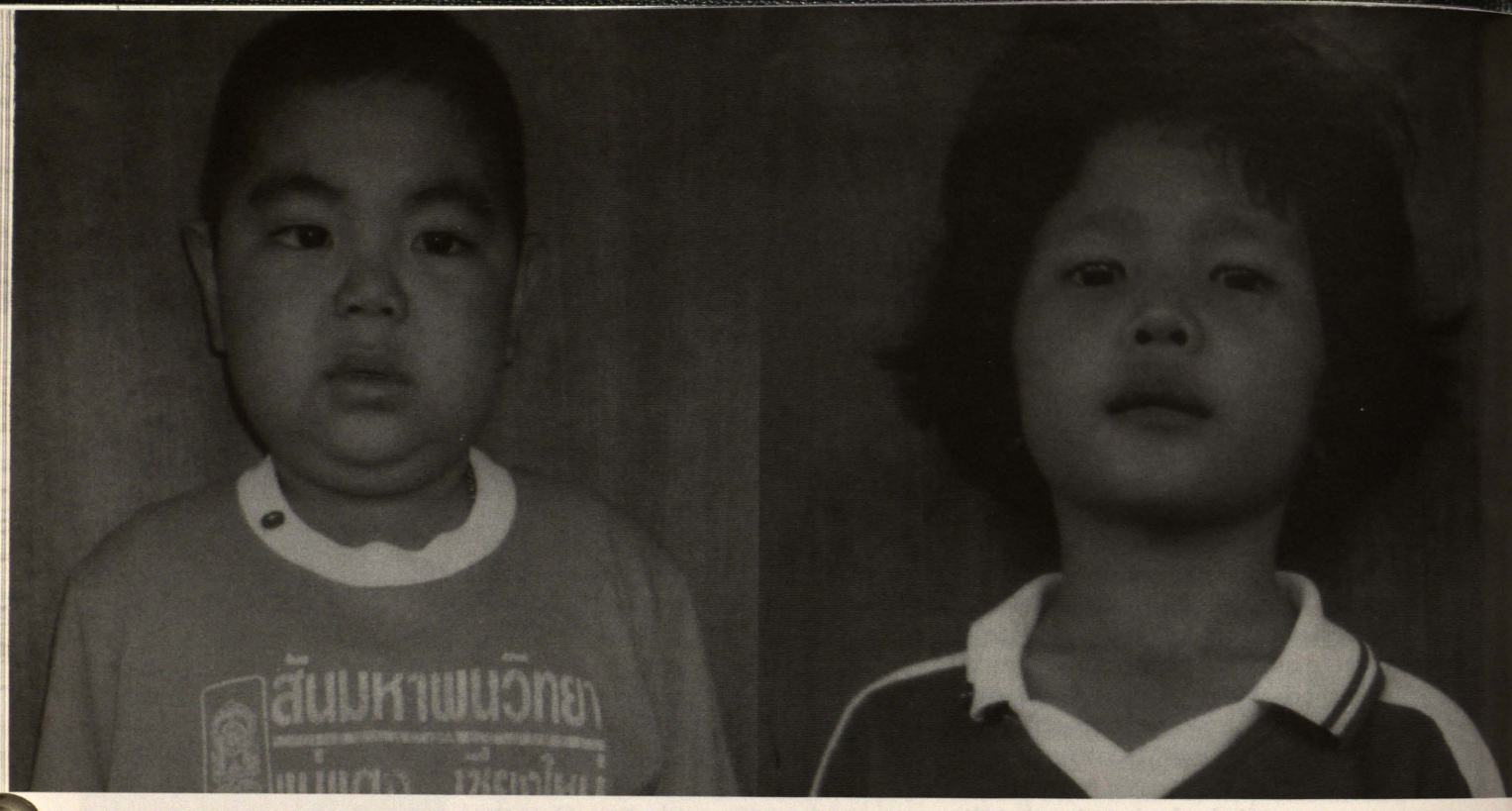
Past PT social programs that have proved successful and have been copied throughout Brazil include the *Bolsa-Escola* (school bursary) program, which provides a stipend for poor families to take their children out of the labor market and put them in school. Research done by the Federal District (DF) shows a significant improvement in this area: the employment rates of children between 10 and 14 years of age decreased by 31.2 percent in 1996-97 (the year in which *Bolsa-Escola* was expanded).

Many of Lula's critics claim that his contradictory promises and huge social spending plans will spell doom for the health of the Brazilian economy. Lula argues that by keeping interest rates high and encouraging major production in domestic sectors, the economy will stabilize itself. He maintains that once the world sees that Brazil has a robust and healthy economy, it will have no choice but to invest in Brazil.

Lula has an incredibly difficult road ahead of him. The problems that paved the way for his victory cannot be solely attributed to Cardoso's government. If conditions worsen Brazilians may hold Lula accountable. The international investors and markets that hold the financial liquidity necessary to boost the Brazilian economy are skeptical. Keeping inflation low, honoring Brazil's international debt and instituting sweeping social programs are Lula's immediate goals. The spending required by the social programs could cause further inflation and the high interest rates required to control the inflation might discourage domestic production. Over the next four years, his attempts to stabilize the Brazilian economy and institute programs that require high government spending certainly won't be easy. Brazil has given Lula the next four years, and now the world is waiting to see if a socialist can save Brazilian capitalism.♦

**"The Workers' Party is transforming party politics in Brazil."**

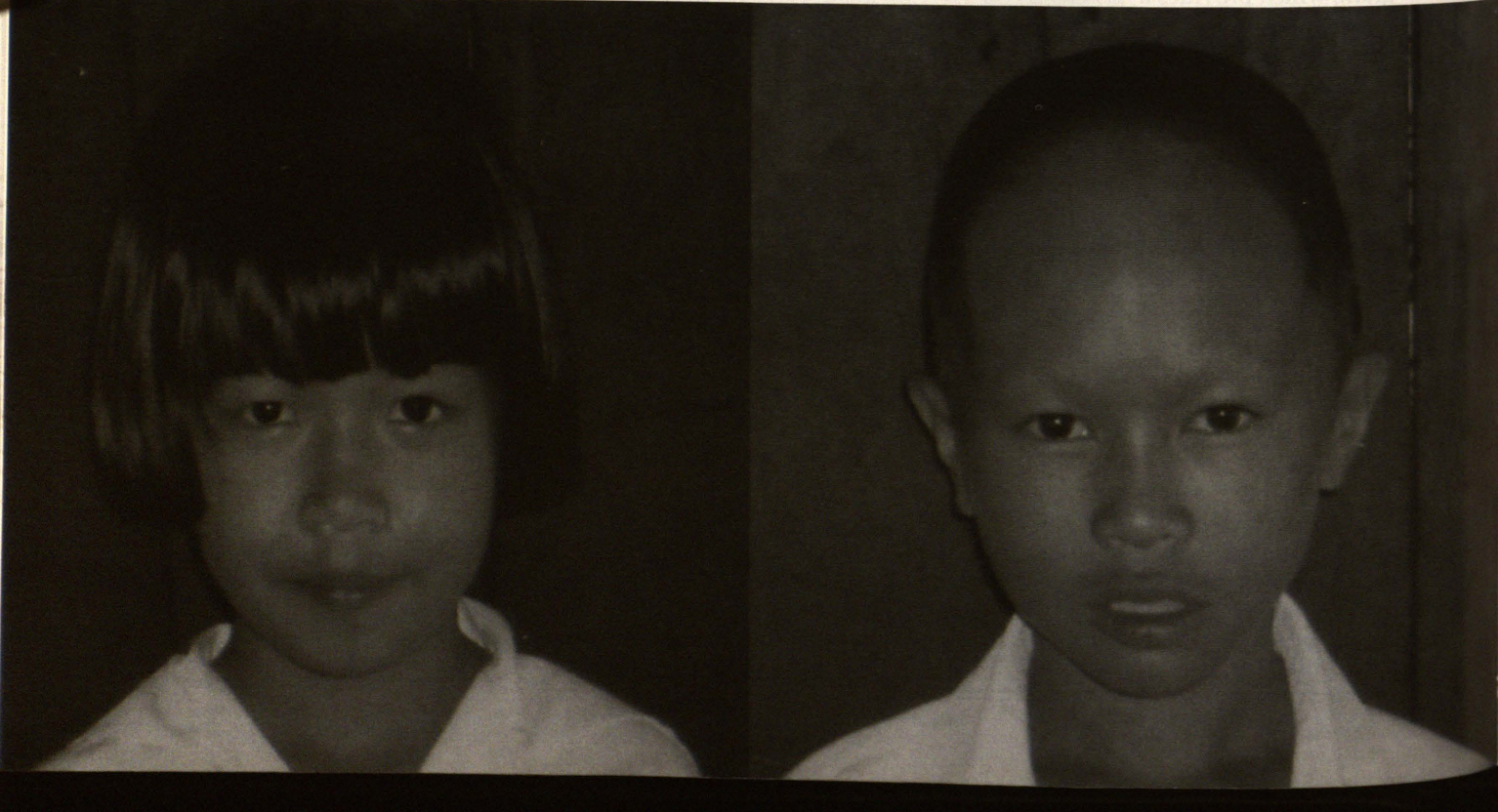
AFP



# ORPHANED BY AIDS

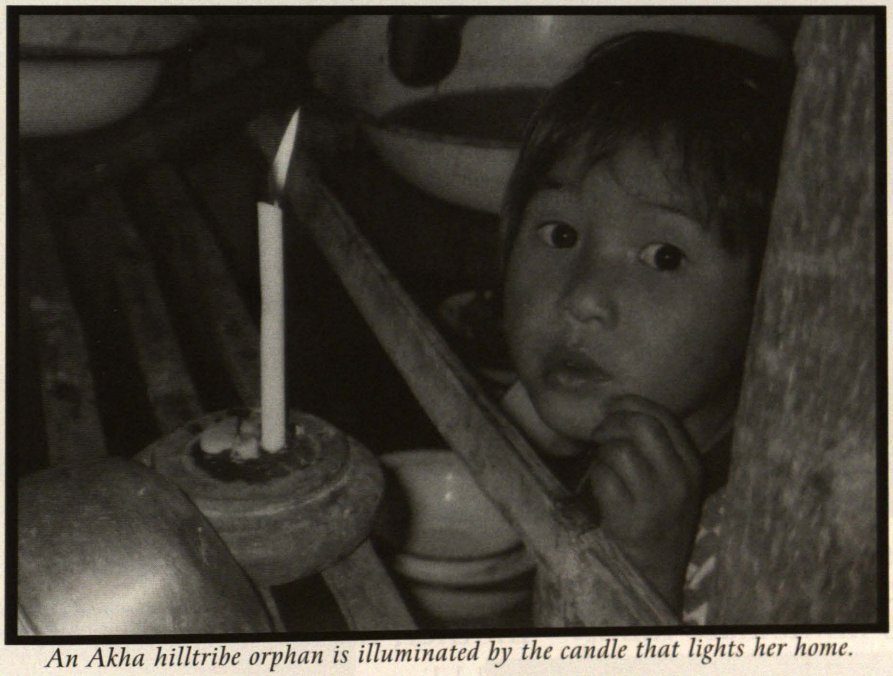
## *THE TRAGIC EFFECTS OF A GLOBAL PANDEMIC*

**by Andrew Klaber**



The tragedy of HIV/AIDS grows more profound with each passing year. Whereas 54,000 Americans lost their lives in the Vietnam War, 58,000 people die of AIDS each week. A further consequence of HIV/AIDS is the 14 million children under the age of 15 who have lost one or both parents to the epidemic. According to the Francois-Xavier Bagnoud Institute, this number is estimated to reach 100 million by the year 2010.

It is difficult to overstate the trauma that children orphaned by HIV/AIDS endure. Hardships include grief over the death of a parent, separation from siblings, distress about worsening economic circumstances, and HIV/AIDS-related discrimination. AIDS orphans are also at serious risk of exploitation, including both physical and sexual abuse. Emotionally disconnected from their parents, some turn to risky sexual behavior. Those forced to live on the streets may turn to prostitution and crime as a means to survive. While most of these children are born free of HIV, their lifestyles make them highly vulnerable to infection.



*An Akha hilltribe orphan is illuminated by the candle that lights her home.*

In addition to these risks, AIDS exacerbates the problem of malnourished and poorly socialized young people. Orphaned children face decreased access to adequate nutrition, basic health care, housing, and clothing. Importantly, few families can afford to send their children to school, and young girls are at particular risk of being denied an education.

Effective policy measures combined with sufficient monetary resources have kept the number of U.S. children orphaned by AIDS to a minimum. The U.S. commitment to containing HIV/AIDS worldwide, however, lags far behind its domestic programs. For example, the American military budget (FY 2003) is $379 billion, while only $165 million (FY 2000) was spent on AIDS prevention, care, treatment, and research in Africa.

The AIDS orphans crisis in Asia, Latin America, and Africa has yet to convince the United States and other developed countries to mobilize greater monetary and diplomatic resources for this global issue. The following are three strategies that the international community can undertake to help protect children orphaned by HIV/AIDS around the world.

First, relatively unaffected nations like America could work with foreign governments to develop and reinforce laws and policies that protect the increasing number of vulnerable AIDS orphans. Possible policies for these governments to pursue include developing and reviewing national HIV/AIDS action plans, creating, strengthening, and reviewing child law and protection services, and collaborating with international organizations, NGOs, religious groups, community associations, and the private sector.

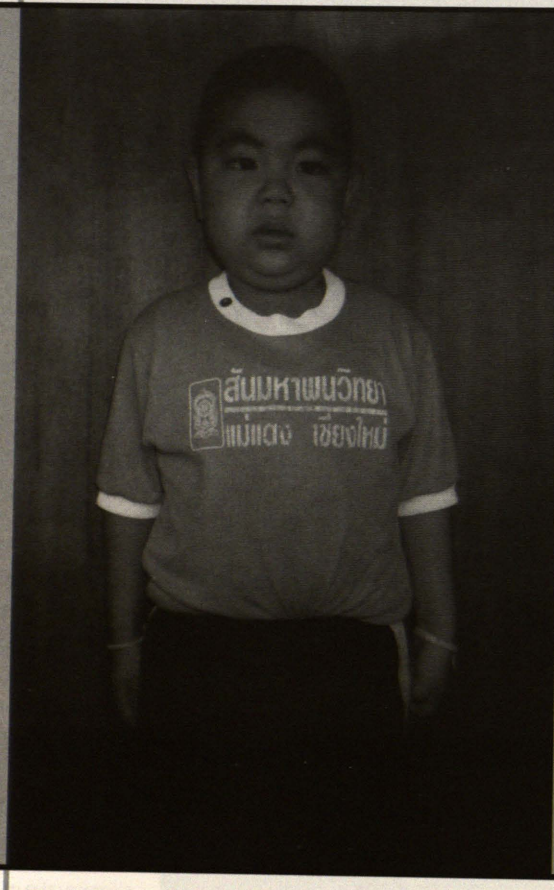
Second, the global community could lend financial support to countries attempting to improve the ability of families to protect and care for their children. This would include expanding basic services such as health care, education, and psychosocial support for children orphaned by the epidemic, and encouraging parents to write wills, make arrangements for their children's care once they are unable to do so, and talk to their children about the future.

Third, governments could continue to increase domestic and international awareness among community leaders, organizations, and the public about the impact of HIV/AIDS on children in an effort to eliminate stigma and generate a broadly shared sense of responsibility for action.

It is important for America and the world to recognize the extent to which young people are affected by the AIDS epidemic. Medical, educational and psychosocial support is necessary for AIDS orphans. For these efforts to be truly succesful, action should go beyond addressing the impact of HIV/AIDS to preventing infection in the first place.

*Andrew Klaber is a junior in Trumbull College at Yale. In the summer of 2002, he founded Orphans Against AIDS, a nonprofit dedicated to providing scholarships to children orphaned by the epidemic.*

# Profile of a Child Orphaned by AIDS

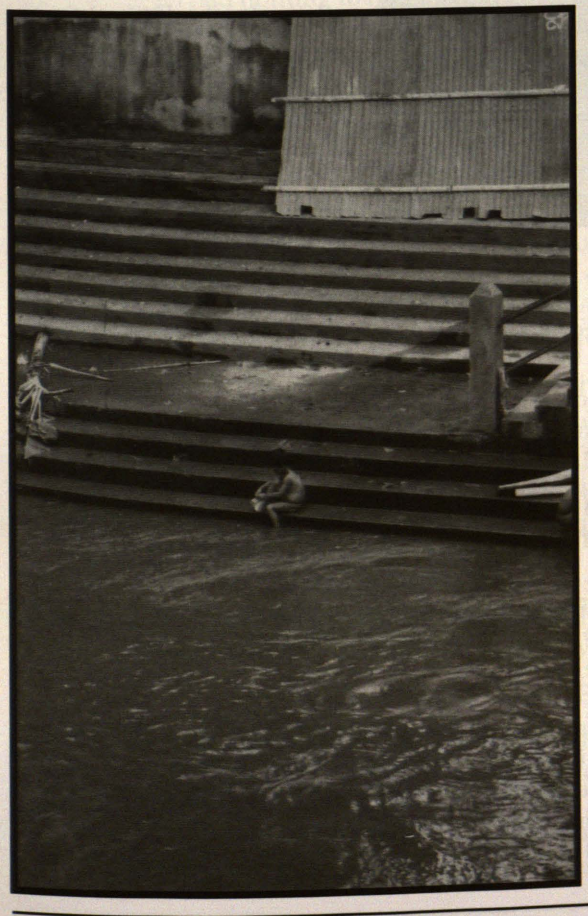


| | |
|---|---|
| **Name** | Jakkrit Lakamja |
| **Age** | 6 years old |
| **Grade** | 1st |
| **Health** | HIV Positive, blind in his right eye |
| **School** | Sun Mahapon Elementary |
| **Nickname** | Fah |
| **Hobby** | Riding his bicycle |

## Jakkrit's Story

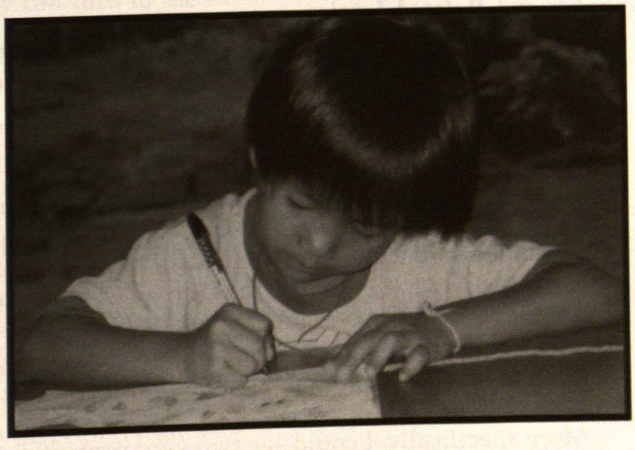
Jakkrit's immediate family - mother, father, and older sister - died of AIDS. This quiet six year-old lives with his two grandparents, Kaew and Dang, who are only able to work a minimal amount because of their age and physical condition. Jakkrit is blind in his right eye and, without proper surgery, doctors said he would soon go blind in his left eye.

In helping to provide Jakkrit with an academic scholarship, Orphans Against AIDS, a non-governmental organization, covered the cost of Jakkrit's eye surgery at Maharat Nakhon Institute of Medicine in Chiang Mai. The surgery was successful and Jakkrit will continue to have vision in his left eye, thus allowing him to continue his education, restoring his self-confidence, and providing him hope for a brighter future.



***Above**: A street orphan begs for money at an open market in Chiang Mai, Thailand.*

***Below**: A girl orphaned by AIDS depicts her emotions through drawing.*



***Left**: A Thai orphan bathes near the Burma border.*

# THE GLOBAL POLITICS OF HUMAN RIGHTS

## An Interview with Mary Robinson

*Mary Robinson, who received an honorary degree from Yale University in 1997, served as the U.N. High Commissioner for Human Rights from 1997 to 2002. As the High Commissioner, Robinson insisted that the principles enshrined in the U.N. Charter and the Universal Declaration of Human Rights be put into practice and not remain abstract ideals. Prior to her U.N. appointment, Robinson was Ireland's first female President from 1990 to 1997. On October 8, she sat down with* The Politic.

SAM ASHER

**The Politic: As Secretary-General of the Durban Conference Against Racism, Racial Discrimination, Xenophobia and Related Intolerance in 2001, did you anticipate the degree of contentiousness that led to the walk-out by Israel and the United States?**

Mary Robinson: About a year and a half before the actual conference, I realized there would be division on such issues as racism and xenophobia. I took the initiative to put forward a vigilant statement of tolerance and respect, exactly what I thought the Durban Conference was intended for. I got Nelson Mandela to be patron of that mission statement and over 70 heads of state signed it, either during the Millennium Summit or directly afterwards.

More specifically, I could see two very contentious issues. One was the reparations for those of African descent. But the other, much more worrying in my opinion, was the growing sense that the Durban Conference was going to be very strongly influenced by the Israeli-Palestinian conflict. The damage was already done at the Asian proprietary conference at Tehran, when language equating Zionism and racism got into the official text. At the Geneva meeting in August 2001, I urged the participants to remove all of the language about Zionism as racism, though it was inevitable that the Durban Conference must address in some way the Israeli-Palestinian conflict.

To make matters more difficult, the United States came to the conference with an insufficient willingness to cooperate. I truly believe that the United States negotiator came to Durban with such a narrow mandate that it was hard to imagine that the U.S. had any intention of seeing the conference through. They came initially to try to get the Zionism as racism language out within 24 hours, but you just can't do that in a seven day conference with many nations participating. I pleaded for them to stay, promising to get the language out, and we did. But the U.S. and Israel were already gone by then.

**Did all of the hype surrounding the conference add to the difficulties?**

To a certain degree, yes. In addition to everything else, I had to deal with non-governmental organizations (NGOs), who were there, among other things, condemning U.S. policy around the world. I was at odds with them and did not accept their forum document because it had incorporated the idea that Zionism is racism. I have been criticized for not using my leadership more in this instance, but I don't know what additional muscle I could have flexed. I wasn't part of the inter-govern-

mental negotiations. I worked very closely with the foreign minister of South Africa, Dr. Nkosana Zuma. I give her great credit for the way she managed to steer a very difficult conference to conclusion. She told me afterwards that she took a terrible bruising from that conference, particularly from the African countries. But she knew that we had to have consensus and we had to come away with a positive resolution.

**Despite the difficulties, do you consider the Durban Conference to be a success?**

Absolutely. If you read the Durban texts, it is very difficult to find anything offensive in there. I think it's a great text. When we finished on September 8, I felt a huge sense of satisfaction that we had gotten a consensus of all the other countries that remained. It was an especially good text on migrants, indigenous peoples, and African descendents.

In addition, the document delicately balanced a condemnation of both anti-Semitism and anti-Arab sentiment. [Former Israeli Prime Minister] Shimon Peres welcomed the Durban text and said that Israel had nothing to fear from this. There is just a large difference between American opinion of the Durban Conference and the positive way in which the rest of the world considers the conference. Latin America in particular seemed to take a lot away. I did a follow-up conference in Mexico, and Mexico really built on the platform at Durban to address issues regarding indigenous peoples. Brazil used it to address the issue of black Brazilians, who have traditionally been an oppressed minority. Europe also took advantage of the momentum from Durban, to deal with discrimination against the Roma.

**What role can the United Nations play in resolving the Israeli-Palestinian conflict?**

It has not been able to play a successful role in the various attempts thus far. I am pleased to see that the United Nations and the Secretary-General in particular are playing a role in this conflict and are now seeking a political solution. I think it's positive that it is no longer the sole responsibility of the U.S., as it was during the Clinton administration. I have to pay tribute to President Clinton for the priority he gave the peace process and the many efforts he made, but that was really only the U.S., Israel, and the Palestinian Authority. Unfortunately, I think global attention has now been slightly sidelined by the focus on Iraq. But if the U.N. can help turn the world's attention towards a political solution, that is when real progress will be made.

**Do you believe that the U.S. withdrawal from the International Criminal Court (ICC) undermines the Court's legitimacy?**

No, though I regretted it very much. It was called "unsigning," which it was, and while it wasn't a fatal blow to the ICC by any means, I do think that it was a step in the wrong direction. I don't think anybody, when President Clinton signed the ICC statute, thought that the U.S. was going to become a member soon. There were clear problems, but it could have been just left like that, and that would have been an understood situation internationally.

Unsigning an international agreement is a very worrisome thing because of the precedent it sets. All over the world, there are countries that want to unsign various agreements on civil and political rights and we make every effort to keep them from backing out. But now they can turn to the example of the United States to renege, and that was what really hurt.

I don't think, however, it undermined the legitimacy of the ICC because no one expected the U.S. to ratify it. I'm more worried about the pressure the United States is putting on governments to exclude U.S. citizens from the operation. But I still think it will go ahead. It's so important. Impunity is one of the greatest evils in the international human rights situation, and the only way to address impunity is to have courts there that can try the violators, and that can issue a warning to perpetrators, saying "you may run, but you cannot hide."

**To what extent, if at all, do the U.S.'s own human rights violations—in par-**

"We had to have consensus and we had to come away with a positive resolution."

AFP

*Demonstrators shout anti-U.S. slogans outside the 2001 World Conference Against Racism in Durban, South Africa.*

**ticular the application of the death penalty in juvenile cases — undermine its own ability to enforce international human rights standards?**

I must say that there is an increasing international sense that the death penalty is not acceptable, despite resistance from some countries particularly concerned with crime levels. But I think this trend is really strong, especially in the European Union. If nothing else, there is an real concern over the morality of the death penalty for the mentally retarded, as it is termed in this country, and for those who are minors when the crime is committed. These are the issues that I raised consistently as High Commissioner. I've written so many letters to governors, and to Madeline Albright and to Colin Powell more recently.

"There is an increasing international sense that the death penalty is not acceptable."

I thought that President Vicente Fox took a wonderful step earlier this year. I had written repeatedly to U.S. officials regarding the impending execution of that particular Mexican national. When he was executed, Fox immediately cancelled his visit to President Bush's ranch in Texas. That was a stance on the issue that reverberated around the world. It is also is hard for me in countries like China, where there is a grave overuse of the death penalty. But the U.S., as the world's only superpower, is by default the standard-bearer. I wish that the Bush administration would focus more on how others see U.S. policy. Having said that, my sense is that there is more questioning of the death penalty in this country than there was five years ago or ten years ago, which I see as encouraging.

**How does the current status of human rights in China affect its ability to become an effective player on the world stage?**

China is a very interesting country from the perspective of human rights. Because it's the largest country in the world, I decided at an early stage in my time as High Commissioner that I should give some priority to a dialogue with China on its human rights.

I adopted a dual approach: I concluded a memorandum of understanding with China in September of 1998, which led to a very significant technical cooperation program on a whole range of issues, from human rights education to a reform of the judiciary. But on each of my seven visits, I would raise, with the relevant authority, individual cases of human rights violations: well-known dissidents who were in prison for years, treatment of Falun Gong members, the Tibetan issue and concern for the Muslim population, especially since 9/11. And having raised them with the responsible authority, I would then tell the press exactly what I had raised, exactly what was said to

me, exactly where I was getting—which was usually nowhere—and I would be very critical, publicly. And what I found was that the international media — The New York Times, CNN, BBC — would cover my visit and give me a lot of airtime. But they didn't give the same time to what I also said, which was that I was extremely pleased with the progress on the technical cooperation project. China is fully cooperating and indeed has taken ownership of the program. That's the bit the Chinese press covered entirely, and I got a big splash in the Chinese press about that. I never quite managed to persuade either the international or the Chinese media to cover both parts.

**How would you characterize the state of U.S. civil liberties post-9/11?**

I see a number of infringements in the policies of the Bush administration after 9/11, and I welcome the fact that NGOs like the Lawyers' Committee for Human Rights can come out with such trenchant reports showing the problems that exist. For example, there is a lack of information on the status of prisoners at Guantanamo Bay.

The use of the immigration laws to hold people for lengths of time without access to lawyers and families is unacceptable, as is the "enemy combatant" state for U.S. citizens. Another concern I have is the tightening of acceptance into the United States for refugees and asylum seekers. I have to ask whether there is any serious study being done of the obligation of the United States as a country that has ratified the covenant on civil and political rights to seek derogation, which is an allowance of greater leeway to states to combat terrorism during an emergency. The United Kingdom sought derogation from the U.N. Human Rights Committee for measures that are far less serious than the measures taken in this country. Non-compliance by the U.S. on this issue is a real problem.

**What do you consider your greatest impact after five years as U.N. High Commissioner on Human Rights?**

I'm going to leave that for others to decide. I think it was very important to put forward a clear agenda of human rights, and then try to work for the integrity of that agenda. To achieve that, it was necessary to do two things. The first was to keep the victims of human rights abuses in mind: that is for whom the Commission works. The second, more substantive thing was to be prepared — really prepared — to criticize developed and developing countries. Holding back criticism, for whatever political reasons, takes away the legitimacy of the agenda and the cause, especially in the field of human rights. Being High Commissioner was a great honor and I'm glad now to take that experience into my future work.♦

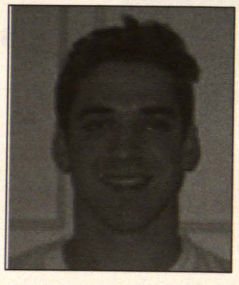
"I wish the Bush administration would focus more on how others see U.S. policy."

PETER J. VAN AGTMAEL

# THE FUNDAMENTALS OF FUNDAMENTALISM

## *American Policy and the Rise of al Qaeda*

by Tyler Golson



Perhaps no topic today attracts more unwarranted oversimplification than the rise of modern Islamic fundamentalism and the events that led up to September 11. Every political commentator, journalist, pundit, historian and religious scholar has taken a crack at explaining why the current strain of fanatical Islam came to be and how it spawned groups like Osama bin Laden's al Qaeda. Almost without exception, these writers tend to isolate one single idea, one group or one policy that bears the prime responsibility for what happened. It is because of Islam. Or it is because of poverty. Or it is because of Israel. In the end, it is of course a combination of many factors.

Yet, in order to fully understand what al Qaeda is and where it came from, it must be situated in its proper context within the larger fundamentalist movement and analyzed as the culmination of a long process of ideological and structural development. This process began with the founding of the prototypical Islamic fundamentalist group — the Muslim Brotherhood — and continues to the present day due to a variety of internal and external factors. Not least among these factors is the role of American policy, which unwittingly served as a crucial catalyst inthe formation of al Qaeda and the empowerment of its members. But before one can appreciate the strong correlation between the creation of al Qaeda and American policy, one must articulate the nature of modern Islamic fundamentalism and identify the elements necessary for its success.

### Beginnings

The origins of the modern Islamic fundamentalist movement can be traced to 1928, when a young Egyptian schoolteacher named Hasan al-Banna formed an association of devout Muslims whose goal was the reformation of society according to Islam. This group called itself the Society of Muslim Brothers (the Muslim Brotherhood), and it professed a simple Islamic nationalism based on the explicit tenets of the Qur'an. It proved immensely successful among the discontented populations of post-Colonial Egypt, and by 1949 it operated over 2000 offices in cities all over the Middle East.[1] The Brotherhood's initial popularity was due at least in part to the simplicity and adaptability of its socio-political platform, which was based on a set of Islamic values that most Arabs could relate to.

The Brotherhood's ideology was originally characterized by a strong ambivalence toward politics. Political parties, as they existed in Egypt and the Western world at large, were seen as dividing the Arab community, and ultimately as tools of capitalism and imperialism. Hence, the Brotherhood rarely referred to itself as a political party and instead concentrated its efforts on educating the masses about Islamic renewal and preaching the oneness of the Qur'an as the answer to society's ills. That said, the Muslim Brothers did occasionally take part in politics, and entered candidates (unsuccessfully) into elections several times after 1942.

In 1947, the United Nations announced the partition of Palestine and the creation of the state of Israel. It was at this point that the United States first entered the crosshairs of the Muslim Brotherhood, who saw the young superpower's compliance with Zionism as an indication of America's hostility towards Islam and Arabs.[2] Still, there were rumors that the Brotherhood received financial con-

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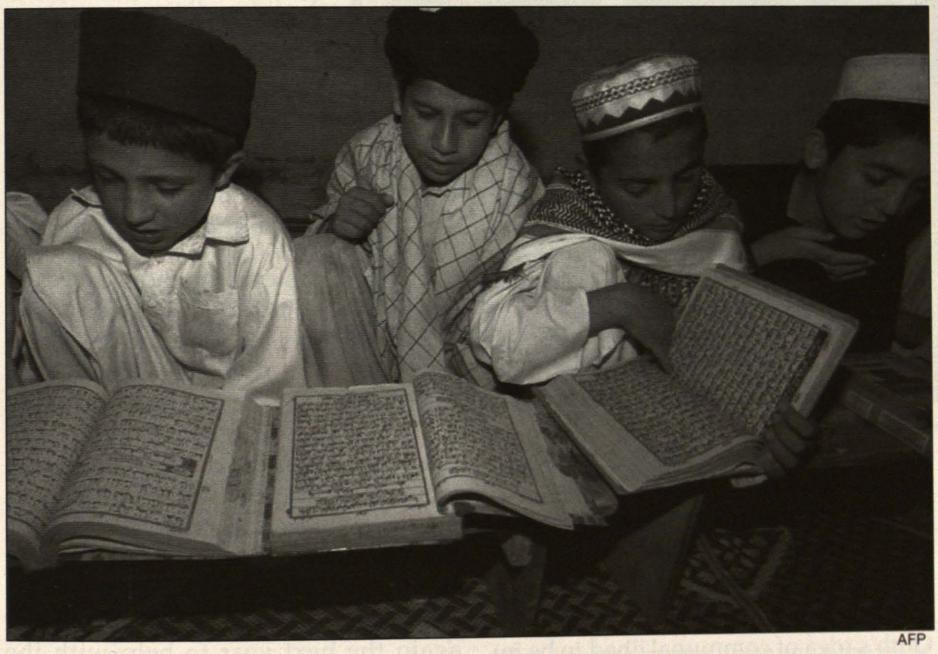
tributions from the American embassy throughout the 1950s as incentives to carry on the fight against Egypt's leftist Prime Minister, Gamal Abdel Nasser. The British and the Americans believed that Nasser was collaborating with the Soviets and, as such, was a much more potent threat to Western interests than were the marginal Muslim Brothers.[3]



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Despite reaching the height of its popularity and influence in 1948 and 1949,[4] the Society of Muslim Brothers was prevented from accomplishing its ultimate mission by three key obstacles. First, the Society lacked a secure home base of operations, because it concentrated its efforts on reforming the domestic (Egyptian, Jordanian, Syrian, etc.) governments which controlled its country. The Brotherhood came under constant attack from the local authorities, and as a result was unable to promote its cause through legal means. The second main obstacle was a sheer lack of resources and material support following the attempted assassination of Nasser by a Brother in 1954. In retaliation, the government seized all of the Brotherhood's assets, and it was unable to maintain its expensive propaganda campaign and social services. The third main obstacle for the Muslim Brotherhood was its lack of central authority. By the 1950s, the Brotherhood had cells in nearly every Middle Eastern and North African country. Without the benefit of an efficient system of intercommunication, however, these cells functioned largely autonomously and focused on their own domestic goals.

As a reaction to its apparent impotence, many of the Islamist groups turned away from Hasan al-Banna's mostly constructive legacy and opted for a policy of destruction and violence. Though Banna stressed the importance of "positive" social reform rather than the subversion of existing institutions, he was pointedly vague about the legitimacy of using violence ("the deeds of the hand") in defense of Islam. Banna's ideology was inevitably reinterpreted by a new generation of repressed fundamentalists to justify the uninhibited use of "physical coercion" and terrorism.[5] By 1964, the Muslim Brotherhood was under the control of Sayyid Qutb, who formally shifted the focus of the underground association to emphasize the collective duty of "jihad" against the enemies of the faith — thus characterizing the struggle against the West as a holy war, a divinely sanctioned clash of good versus evil. Qutb saw the Americans, British, Zionists and Communists as 20th century incarnations of the medieval crusaders, dressed in different garb but motivated by the same opposition to Islam.[6]

In 1977, an engineering student named Mohammed Abdel-Salam Faraj-Atiya published a work called "The Ne-

"American policy unwittingly served as a crucial catalyst for the formation of al Qaeda."

*Supporters of the Muslim Brotherhood rally in support of the Intifada on September 7, 2001.* AFP

"By 1988, the majority of bin Laden's financial support went to Zawahiri and Islamic Jihad."

glected Duty," which radically altered the course of popular Islamic fundamentalism towards a total rejection of peaceful reform in favor of violent jihad. Faraj-Atiya was a great admirer of Sayyid Qutb's, but Faraj-Atiya considered Qutb's idea of communal jihad to be ineffective given the current state of Islam in the world. According to Faraj-Atiya, because Islam itself is seriously threatened by infidels, each individual Muslim is required to take up the sword of jihad and defend the faith. This distinction between communal jihad, waged by a general movement and requiring authorization from a religious figure, and individual jihad, waged by every Muslim and requiring no official authorization, is a crucial one; some would argue that it makes the difference between legitimate activism and terrorism.

Significantly, Faraj-Atiya became the chief ideologue of the youngest, most zealous offshoot of the Muslim Brotherhood: Islamic Jihad. This group was originally a combination of four smaller student organizations in Cairo, and by the late 1980s its well-educated membership was led by a physician named Ayman al-Zawahiri. Though the concept of jihad had been reformulated and refined to sanction the individual use of violence against the greater foreign enemy, the same basic problems still faced Ayman al-Zawahiri and the fundamentalists—they lacked financial resources, an effective central authority and a sheltered base of operations from which to launch the envisioned jihad. The solution would be provided by American policy and Osama bin Laden.

## How It All Came Together

Ayman al-Zawahiri first came to Afghanistan in the summer of 1980, just after the Soviet invasion.[7] He accompanied a medical colleague from the Muslim Brothers' clinic in Cairo to the Pakistan-Afghanistan border city of Peshawar in order to administer basic care to the thousands of Afghan refugees fleeing the imminent warfare. Zawahiri was so compelled by the courage displayed by the mujahidin ("fighters for jihad") against the seemingly invincible Red Army machine that he returned to Afghanistan again the next year to help with the struggle. However, his life and work were still in Egypt, and he continued to work locally as both a fundamentalist activist and physician.

President Anwar Sadat was assassinated on October 6, 1981, by a young army officer with ties to Islamic Jihad. Though Zawahiri was not yet in a leadership position within the group, he was indirectly implicated and thrown into jail with 700 other suspected conspirators.[8] Zawahiri spent three years in jail, enduring torture and sharpening his hatred towards the enemies of Islam. When he was finally released, Zawahiri decided to leave Egpyt and take up a medical residence in Jiddah, Saudi Arabia. From there, Zawahiri was free to make excursions into Afghanistan, organizing mujahidin forces and providing medical assistance.

By 1985, the United States was contributing an estimated $250 million to the Afghans in their struggle against the Soviets, funneling it via the Pakistani Inter-Services Intelligence Agency (ISI) in the form of advanced weaponry, military advisors and raw intelligence.[9] Muslims

from across the globe came to be a part of this "Arab Afghan" revolt, if only for a few months at a time, sustained entirely by the support provided by the United States, Pakistan, and individual Arab donors. Out of this growing pool of seasoned war veterans, Zawahiri recruited skilled Egyptian mujahidin and created a devoted core of followers.

Coincidentally, while Zawahiri was building up the ranks of Islamic Jihad and honing his political ideology, a young, charismatic businessman named Osama bin Laden was gaining notoriety among the mujahidin by shuttling back and forth between Saudi Arabia and Peshawar to raise money for the warriors. At this point, Osama bin Laden was merely a fundraiser and fundamentalist sympathizer, unfocused and inexperienced in the world of underground activism. Yet he was known to be well-connected in the international business world and technologically savvy-traits he acquired while managing his family's massive construction company.

It is not clear when bin Laden and Zawahiri first met, but it is certain that Zawahiri immediately recognized the immense potential value in a partnership with bin Laden, and he began to position key Islamic Jihad members around the wealthy Saudi.[10] By 1988, the majority of bin Laden's financial support went to Zawahiri and Islamic Jihad.[11] The two men complemented each other perfectly: one was a hardened political ideologue without the means to fund or popularize his movement. The other was a novice political dissident with immense wealth but no clear idea of how to put it to use. When Zawahiri and bin Laden teamed up, the most powerful Islamic fundamentalist movement in the world now had access to a steady source of financial support.

The Soviets withdrew from the disastrous Afghanistan conflict in 1989, just as the alliance between Zawahiri and bin Laden had cemented. Communism had been effectively driven out of Afghanistan by the mujahidin, yet the same problem persisted: the West still dominated the Muslim world. The solution, as decided in 1989 by a group of ten men in the Afghan town of Khost, was to form an entirely new organization that could take the jihad beyond the borders of Afghanistan, beyond the borders of Muslim lands entirely, and into the West itself.[12] The name given to this loose grouping of mujahidin fighters and fundamentalist leaders was al Qaeda—"the Base." Its membership was dominated by Egyptian Islamic Jihad and the handpicked associates of Zawahiri, but the man with the money, bin Laden, was its official leader. However, "the Base" still lacked a secure home base of its own from which it could carry out its plans, and its few members dispersed to their native countries.

Immediately after the exit of the Soviets, the mujahidin warlords began to fight amongst themselves over what was left of Afghanistan. Despite promises from the United States government that the newly-liberated nation would be helped back onto its feet and rebuilt as a democracy, Afghanistan's shell-shocked and ethnically-divided population was left to fend for itself. The mujahidin generals proceeded to carve up the countryside into ragged protectorates.

Shortly after Osama bin Laden left Afghanistan, Saddam Hussein invaded Kuwait and the United States began a military presence in Saudi Arabia. Bin Laden was enraged by the prospect of Islam's great enemy occupying the most holy of Muslim lands, and he made vocal protests to the Saudi government, offering the services of his own band of holy warriors in defense of the nation. Dependent on Western political support and oil contracts, the Saudis rejected bin Laden's offer and pressured him to leave the country. Bin Laden and Zawahiri lived for a time in Sudan, training new recruits and accumulating connections, but ended up returning to the lawless no man's land of post-Soviet Afghanistan, where they waited out the bitter civil war.

In 1998, a group of traditional Islamic scholars called the Taliban succeeded in subduing the Afghan warlords and establishing an iron-fisted regime in Afghanistan based on the strict interpretation of *shariah*. The Taliban brought a much-needed respite from the perpetual chaos that followed the Soviet withdrawal and the indifference of the Americans. A recent book by Steven Schwartz even suggests that America took an active role in establishing the Taliban regime, which was thought to be akin to the "moderate" Wahhabist Is-

"Afghanistan's shell-shocked and ethnically divided population was left to fend for itself."

lamic regime in Saudi Arabia. This assertion is supported by the fact that the Pakistani *madrassas*, where most of the Taliban were educated (the name, Taliban literally means "students"), were funded by Saudi Arabia, which in turn was largely responsible for installing the Taliban.[13] Plus, the Taliban promised to stem the billion-dollar heroin trade that had been the lifeblood of the Afghan economy for decades—a move that drew international praise and warranted economic subsidies from the U.S. government. Bin Laden and Zawahiri, already entrenched in Afghanistan and in control of a vast amount of financial and technical resources, welcomed the Taliban and began a codependent relationship with the government based on the exchange of technical and financial support for basic security.

Finally, after fifty years of domestic persecution, an Islamic fundamentalist cell had found a secure home base from which it could freely carry out its plans. Al Qaeda established a huge system of training camps and terrorist schools throughout the foreboding deserts and craggy mountains of Afghanistan, drawing on an extensive system of connections and expertise cultivated during 20 years of activism. In order to extend the reach of al Qaeda into the midst of the infidels, bin Laden and Zawahiri established covert "sleeper" cells in dozens of countries around the world and used a new, inexpensive American invention—the Internet—to direct and organize these cells.

Once all of these factors were in place, it was only a matter of time before al Qaeda was able to execute the September 11 massacre.

American indifference, if not financial backing, allowed the Muslim Brotherhood in the 1940s and 50s to flourish and develop. American support for the creation of Israel made it a potential target for the entire Arab world. American military, political and financial support allowed the mujahidin to train in the arts of war and attract thousands of discontented Muslims to fight in Afghanistan. This war provided the occasion for bin Laden and Zawahiri to meet for the first time, who in turn transformed Islamic jihad into the well-financed, well-organized al Qaeda organization. America's deployment of troops to Saudi Arabia drove bin Laden to focus his anger squarely on the United States and to resettle in Afghanistan, where he was free to pursue his terrorist agenda. America's failure to rebuild Afghanistan after the war it funded resulted in the power vacuum that swept the Taliban into power. American compliance with the Saudi-backed Taliban regime (not to mention economic encouragement in the "war on drugs") allowed a brutal autocracy and terrorist-friendly government to thrive, which in turn nurtured al Qaeda. And finally, America's proliferation of Internet technology to the rest of the world allowed al Qaeda to retain its central authority while spreading out across the globe.

In the end, it was a confluence of American policy decisions gone wrong and sheer coincidence that allowed the inheritors of Hasan al-Banna's fundamentalist idea to overcome the obstacles associated with Islamic fundamentalism and succeed where other groups had failed. Clearly, many of America's policies did not seem harmful at the time. Some were inevitable, some were the result of a joint effort with other countries and some were actually good ideas that were warped by our enemies. But all were deliberate choices of the American government, and they combined to facilitate, if not cause, the worst and most horrifying terrorist act in history. ♦

"American support for the creation of Israel made it a potential target to the entire Arab world."

**Endnotes**

[1] Mitchell, The Society of the Muslim Brothers, Oxford University Press 1993, p. 328

[2] Ibid, p. 227

[3] Ibid, p. 182

[4] Ibid, p. 328

[5] Ali, p. 110

[6] Qutb, Sayyad, Milestones.

[7] Ibid, p. 66

[8] Ibid, p. 68

[9] Ibid, p. 73

[10] Ibid, p. 74

[11] Ibid, p. 74

[12] Ibid, p. 75

[13] Steven Schwartz, The Two Faces of Islam: The House of Saud From Tradition to Terror. Doubleday, 2002

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# TOXIC THREATS

## AN INTERVIEW WITH DR. JONATHAN B. TUCKER

*Dr. Jonathan B. Tucker has served in the U.S. Department of State, the Congressional Office of Technology Assessment, the U.S. Arms Control and Disarmament Agency, and as a United Nations biological weapons inspector in Iraq in 1995. He holds a B.S. in biology from Yale University and a Ph.D. in political science from MIT with a concentration in defense and arms control studies. Dr. Tucker is the editor of* Toxic Terror: Assessing Terrorist Use of Chemical and Biological Weapons (MIT Press, 2000) *and the author of* Scourge: The Once and Future Threat of Smallpox (Atlantic Monthly Press, 2001). *He is currently a Senior Fellow at the U.S. Institute of Peace. On November 4, 2002, Dr. Tucker sat down with* The Politic.

**The Politic: The term "weapons inspection" has been tossed around a lot in the media but has not been well defined. Could you explain how a weapons inspection is conducted?**

Jonathan B. Tucker: To some extent, the meaning of the term depends on the context. The weapons inspections conducted by the United Nations Special Commission (UNSCOM) in Iraq from 1991 to 1998 were imposed on a country that had been defeated militarily. As a result, they were more intrusive than what countries would accept voluntarily as part of a negotiated arms control verification regime. After Iraq's defeat in the 1991 Gulf War, the cease-fire agreement required Baghdad to

"If Washington continues to threaten regime change regardless of Saddam's behavior, then Iraq has no incentive to disarm."

declare all of its prohibited weapons -- nuclear, chemical, and biological — and ballistic missiles with a range of more than 150 kilometers. UNSCOM inspectors would then verify Iraq's declarations and destroy or render harmless the banned weapons and production facilities.

Of course, the Iraqis didn't comply with this arrangement. Instead, they provided incomplete and misleading declarations and played a game of cat-and-mouse with the inspectors for seven years in an effort to preserve key elements of their mass-destruction arsenals, particularly in the biological weapons area. Because many of Iraq's bioweapons production facilities were disguised as commercial factories for making vaccines, animal feed, biopesticide, and other legitimate products, it was hard for the U.N. inspectors to prove that these sites had engaged in illicit weapons production.

In the face of Iraqi obstructionism, the UNSCOM inspectors became more aggressive, ingenious, intrusive, and engaged in persistent detective work. One strategy used by the biological inspectors was to collect information on Iraqi imports of culture media — the nutrients used to grow large quantities of bacteria in stainless-steel tanks called fermenters. UNSCOM determined that Iraq had imported 39 tons of culture media from foreign suppliers. That was a huge quantity, enough to grow about four tons of bacteria. The inspectors compared the 39 ton figure with the amount of media Iraq claimed to have consumed for legitimate purposes, such as hospital diagnostics, and identified a discrepancy of 17 tons that the Iraqis couldn't explain. This "mass-balance" calculation ultimately forced Iraq to admit that it had produced large quantities of biowarfare agents with the missing culture media.

Putting the Iraqi government on the defensive and exposing lies by senior officials created a lot of strain within the Iraqi regime. Those tensions may have contributed to the defection of Lt. Gen. Hussein Kamel, Saddam Hussein's son-in-law who revealed that shortly before the 1991 Gulf War, Iraq had loaded large quantities of anthrax and other agents into aerial bombs and missile warheads. Fortunately, the weapons were not used.

Compared to the UNSCOM inspections in Iraq, inspections to verify arms control treaties tend to be less intrusive. For example, compliance with the 1993 Chemical Weapons Convention (CWC), which currently has 147 member states, is monitored by international inspection teams from the Organization for the Prohibition of Chemical Weapons (OPCW) in The Hague. Parties to the CWC are required to declare any stocks of chemical weapons, as well as industrial plants making "dual-use" chemicals that have peaceful applications but could be diverted towards illicit chemical weapons production. OPCW inspection teams monitor the destruction of chemical weapons stocks and visit declared industrial facilities. In addition to visual inspection, the teams check production records to make sure they are consistent with declared activities, and take samples to test for traces of prohibited chemicals.

The system of routine inspections under the CWC is supposed to be augmented by so-called "challenge" inspections, in which a member state requests the international inspectorate to visit a site — declared or undeclared — on the territory of another member-state that is suspected of a treaty violation. Unfortunately, in the more than five years since the CWC came into effect in April 1997, no country has launched a challenge inspection. Although the United States has publicly accused Iran of violating the CWC, the fact that the U.S. has not pursued this allegation by requesting a challenge inspection has weakened the treaty. I hope this policy will change in the near future.

**To what degree do inspections provide a viable way to determine whether a state is producing weapons of mass destruction?**

I believe that the successor agency to UNSCOM, known as the U.N. Monitoring, Verification and Inspection Commission (UNMOVIC), can be effective in eliminating a militarily significant mass-destruction capability in Iraq if three conditions are met. First, Iraq must grant immediate access to any site suspected of containing prohibited weapons, documents, or activities and allow the inspectors to interview Iraqi scientists without interference. Under the old UNSCOM system, inspector access was restricted at so-called presidential sites, such as Saddam's palaces. Moreover, all interviews with Iraqi scientists were con-

ducted in the presence of a government official, which had a clear chilling effect. Scientists knew that they and their families were at risk of retribution and even death if they revealed too much.

The second prerequisite for effective U.N. weapons inspections is accurate and timely intelligence information from supporting countries, including the United States. Iraq is about the size of California, so there are a lot of possible hiding places. Unless the UNMOVIC inspectors know where to look, it will be difficult for them to ferret out hidden weapons and clandestine production facilities.

Finally, the political foundations of the inspection system must be solid. Since the U.N. inspectors are unarmed, their power flows exclusively from the U.N. Security Council, which can maintain economic sanctions and authorize military action if Iraq does not comply. During the UNSCOM period, Iraq was shrewd at divide-and-conquer tactics, in which it played the five permanent members of the Security Council (P-5) against one another. For example, Baghdad offered lucrative oil contracts to the French or the Russians if they both certified that Iraq was disarmed and pushed to lift the embargo. If Iraq manages to divide the P-5 once again, the U.N. inspections will not be effective.

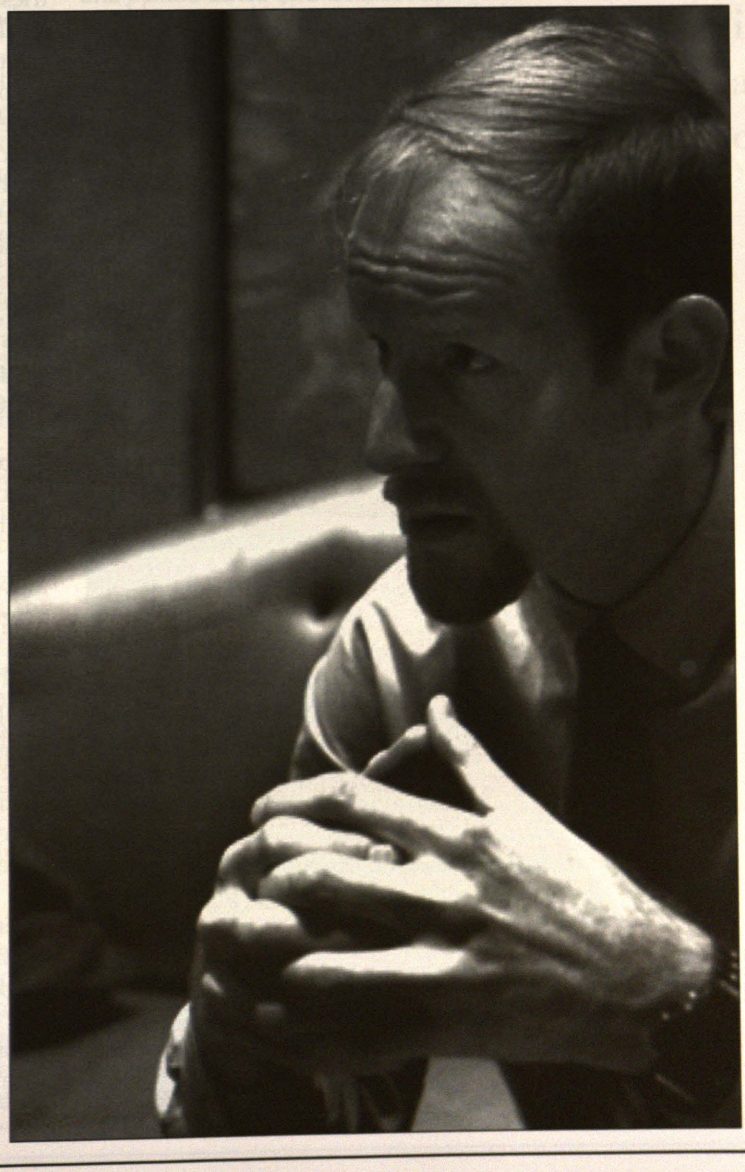
**Members of the Bush administration have hinted that they don't see the U.N. weapons inspection process as legitimate. What negative ramifications will that have for the process?**

Both carrots and sticks will be needed to secure Iraq's cooperation with its own disarmament. If the United States wants the U.N. inspections to work, it will have to give Saddam a clear choice: give up weapons of mass destruction voluntarily and be allowed to remain in power, or defy the inspection regime and face a high risk of being overthrown by military force. If Washington continues to threaten regime change regardless of Saddam's behavior, then Iraq has no incentive to disarm. In fact, he's better off retaining his prohibited weapons for a last-ditch effort to repel an invasion.

**You considered the potential threat of smallpox in your book *Scourge: The Once and Future Threat of Smallpox*. Would you discuss some of the issues surrounding this threat?**

I started researching *Scourge* in the fall of 1998 and it was published one week before September 11, 2001, so the timing was eerie. Although smallpox is definitely not the most likely bioterrorist scenario, it is one of the higher consequence threats because the virus can infect people through the air or by contact with contaminated linens, is contagious from person to person once the skin rash has appeared and causes a fatal outcome in about a third of its victims. Smallpox also has an incubation pe-

"If Iraq manages to divide the P-5 once again, the U.N. inspections will not be effective."



PETER J. VAN AGTMAEL

"The Soviet Union had secretly produced smallpox as a doomsday weapon."

riod of up to two weeks, so a group of people could be infected and not know it until after they were widely dispersed, at which point they could begin spreading the disease to others.

The chances that rogue states or terrorists could obtain the smallpox virus are fairly low because the disease was eradicated worldwide 25 years ago by a global vaccination campaign led by the World Health Organization (WHO). Today, samples of the smallpox virus are supposed to be limited to two official repositories in the United States and Russia. But undeclared stocks of the virus may exist, so the risk of military or terrorist use is not zero. In 1992, a senior defector revealed that the Soviet Union had secretly produced tons of a liquid suspension of smallpox virus as a doomsday weapon. In the event of World War III, the agent would have been loaded into aerial bombs and missile warheads targeted at U.S. cities, to kill the survivors of a nuclear war. Reportedly, the Soviets were also trying to genetically engineer more lethal strains of the smallpox virus, although it's doubtful they succeeded. After the breakup of the Soviet Union, the U.S. government worried that samples of the virus could have been smuggled out of the Soviet Union. Another concern is that some countries may have retained samples of the smallpox virus from natural outbreaks, in violation of WHO regulations. For example, the last natural outbreak of smallpox in Iraq was in 1972, so it's possible that Iraqi scientists preserved samples of the virus.

Earlier this year, U.S. troops in Afghanistan discovered crude biological laboratories that had been abandoned by al Qaeda, with evidence of experimentation with anthrax. No evidence to date suggests that al Qaeda has obtained samples of smallpox virus, but there's no reason for complacency. Given the potential threat, the United States, Israel, and other countries are erring on the side of caution by stockpiling smallpox vaccine and preparing to administer it widely in the event of an outbreak. There's also a debate over whether the vaccine should be administered prophylactically on a voluntary basis, but the significant medical risks associated with the vaccine itself make this a difficult decision.

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**You just suggested that Iraqis may have vials of smallpox. Would it be possible for weapons inspectors to determine something like that?**

Probably not. The difficulty is that a seed culture of a biological agent such as anthrax can be stored in a small vial for long periods in a dried or frozen state, and then grown up in a nutrient solution to produce a significant quantity of agent. For this reason, biological materials pose a qualitatively different type of threat than nuclear weapon materials, which are difficult and costly to manufacture and give off detectable amounts of radiation. Similarly, chemical warfare agents have to be produced and delivered in large quantities to have a mass-casualty impact.

**What do you think about the policies of the Bush administration toward the heightened alarm post-September 11?**

It's a mixed bag. In the plus column, the administration has recognized that reducing the nation's vulnerability to

bioterrorism requires strengthening the U.S. public health infrastructure, mainly at the state and local levels. Early on, there was an incorrect tendency to lump chemical and biological terrorism together as a single threat, when in fact these weapons have different characteristics and require different responses. In the case of a chemical attack, the victims would develop immediate symptoms and would have to be treated rapidly by first responders, such as firefighters and emergency medical technicians. Antidotes are available for some, but not all, chemical agents.

In contrast, a bioterror attack itself would probably not be detected immediately. People would be infected with an agent that was either spread through the air as an aerosol or used to contaminate food or beverages. After an incubation period of days or weeks, the victims would develop symptoms — at first resembling a bad case of the flu. The first responders would be emergency room doctors and private physicians, who would have to be trained to diagnose exotic diseases such as anthrax, which they never encounter in their ordinary medical practice. These practitioners would then have to notify the public health authorities, who would coodinate the medical response to the outbreak, such as antibiotic therapy or vaccination.

Having recognized that strengthening the U.S. public health system is the best way to deal with bioterrorism, the Bush administration has begun to deliver the needed financial and technical resources to the states, counties, and cities which would be on the front lines in an attack. But there will still be a time lag in implementing the plans for enhanced infectious disease detection and response. The federal government needs to monitor the implementation of these plans across the country and make sure they are tested under realistic conditions. It's not enough to have 280 million doses of smallpox vaccine on the shelf if, in the event of an outbreak, the vaccine can't be administered to the public in an efficient and orderly fashion.

In the negative column, the Bush administration has blocked efforts to strengthen the 1972 Biological Weapons Convention (BWC), the key treaty for countering the proliferation of biological weapons. Although the BWC bans the development, production, and stockpiling of these weapons, it's little more than a gentleman's agreement because it lacks formal measures to enforce compliance. Indeed, we know that the Soviet Union and apartheid South Africa violated the treaty but were not punished.

When the Bush administration came into office, it inherited a six-year effort to strengthen the BWC by negotiating a legally binding protocol that would establish a system of declarations and inspections of treaty-relevant facilities. The Clinton administration had participated in the protocol negotiations, along with about 50 other countries. But the Bush administration has a deeply skeptical attitude towards multilateral arms control, and in the summer of 2001, it rejected the draft protocol out of hand. Administration officials argued that any inspection regime for the BWC was doomed to failure because of the dual-use nature of biotechnology: one could convert a vaccine plant to bioweapons production temporarily, convert it back to legitimate production, and nobody would know the difference. U.S. officials also said that if foreign inspectors visited U.S. pharmaceutical and biotechnology plants, they would be able to steal valuable trade secrets. Because the U.S. leads the world in this field, it has the most to lose in terms of proprietary information. Still, there may have been ways to address these concerns short of torpedoing the entire negotiation.

To date, the Bush administration has continued to oppose multilateral approaches for combating the biological weapons threat. I believe this policy is shortsighted because nonproliferation is one area where the United States can't go it alone. Administration officials have suggested that as an alternative to the BWC protocol, each country should develop national legislation to restrict access to dangerous pathogens that could be used for biological warfare but have legitimate uses in biomedical research and vaccine production. The problem is that if each country develops its own rules, the result will be an uneven patchwork of national laws and regulations. In that case, terrorists will focus their procurement efforts on countries with the weakest controls or the laxest enforcement. Given this reality, the only effective way to prevent bioterrorism is to establish uniform international standards for the physical protection and control of dangerous pathogens. ♦

"Nonproliferation is one area where the United States can't go it alone."

# THE TERRORIST'S ARSENAL

## *Understanding Weapons of Mass Destruction*

by D. Allan Bromley & Victoria V. Sutton

The nature of weapons of mass destruction (WMD) and the characteristics of terrorist attacks in which they are used have been the subject of much confusion and misunderstanding. Traditionally, WMD is used as a generic term covering nuclear, radiological, chemical, and biological weapons. Because each of these weapons is fundamentally different, they should be individually understood and addressed.

The United States first used nuclear explosives to end World War II in the Pacific. The 10-kiloton Hiroshima uranium weapon and the 20-kiloton Nagasaki plutonium weapon, which used 15 pounds of plutonium, essentially destroyed both cities, but are small and crude by modern standards. Today's terrorists might well use the simpler enriched uranium weapons if sponsored by emerging nuclear powers, but are much more likely to use modern, surplus plutonium warheads obtained through the black market.

A simple nuclear explosion creates destruction first through a physical blast, then through the radiation of neutron and gamma rays as well as infrared, optical, and ultraviolet radiation, and finally through fallout, consisting of radioactive species produced in the initial explosion and its immediate environment.

A wide variety of nuclear weapons exists. At one end of the range are the "clean" or neutron bombs that minimize the blast effect while emphasizing the neutron yield in particular; these would kill humans in the target zone, while leaving the infrastructure largely undamaged. At the other extreme is the "dirty" nuclear weapon, which simply requires a shell of normal cobalt metal around an enhanced neutron system. Such a weapon yields enormous amounts of cobalt-60, a radioactive isotope used in medical and food sterilization devices that emits high-energy gamma radiation with a half-life of about 5.3 years. This would render a very large area, typically that of an entire city, uninhabitable for approximately half a century. While this would be the ultimate radiation weapon, terrorists might rather use a much less destructive weapon. In this scenario, a shell of already radioactive material, either stolen from sterilization devices or obtained from spent nuclear power reactor fuel, is placed around a conventional chemical bomb. The resulting explosion would distribute the radioactive material over a substantial area.

The impact of nuclear weapons is qualitatively different from that of chemical ones, because typical nuclear reactions release roughly a million times the energy of a typical chemical reaction. Chemical weapons have a relatively long history. Their type and usage range from irritants such as mustard gas utilized by the Germans in World War I, to a wide variety of nerve gases such as sarin or ricin. These nerve gases were used by the Iraqis against their Kurdish citizens in 1988, and ineffectively by a Japanese cult in an attack on the Tokyo subway system in 1995. Irritants like mustard gas cause permanent damage or death by permeating the skin or by entering the lungs. Furthermore, nerve gases attack the central nervous system, rendering the subject either unable to function or, in a large percentage of cases, dead.

Biological weapons have a very long history in terrorism. The most important biological agents are smallpox, caused by a virus (*variola major*); anthrax, caused by a bacterium (*baccillus anthracis*); and plague, also caused by a bacterium (*versinia pestis*). A number of other biological agents, including tularemia, botulism and hemorrhagic fevers (such as the Ebola and Marburg strains), have been weaponized by the former Soviet Union, Iraq, and possibly other nations as well. Smallpox, the most deadly, was used in 1763 by Colonel Henry Bouchet as a way of killing large numbers of Native Americans during Pontiac's Rebellion. The Russians used tularemia against German invaders in World War II. Anthrax was produced in enormous quantities by the Soviet Union and Iraq in their biological weapons factories, and then distributed widely in the Middle East and North Korea.

Smallpox, which kills 30 to 40 percent of its victims and leaves its survivors in prolonged agony and per-

*D. Allan Bromley is the Sterling Professor of the Sciences at Yale and the former Assistant to President Bush, Sr. for Science and Technology. Victoria V. Sutton is the Director of the Center for Biodefense, Law, and Public Policy at Texas Tech.*

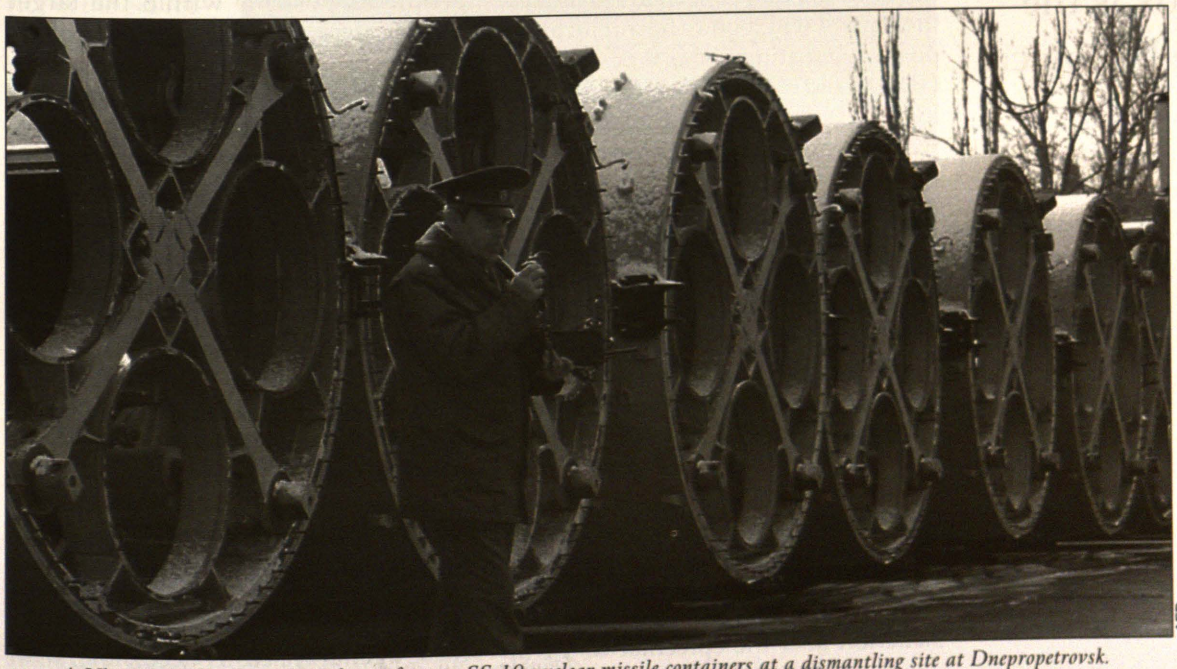
manent disfiguration, is the ultimate biological weapon. Though the last natural case was thought to have occurred in Somalia in 1977, the United States, on the advice of the World Health Organization, stopped smallpox vaccination in 1972. After discontinuing the administration of the vaccine, the United States believed that the general population would still be protected against infection because of their earlier vaccinations. The old vaccinations, however, have decayed and are no longer effective in those people who received it many years ago. Furthermore, even if the old smallpox vaccinations were still effective, terrorists would most likely use a genetically engineered form of the virus that would not be affected by the former vaccinations.

Anthrax, though not contagious, can be fatal when inhaled or ingested, and very damaging when contracted through breaks in the skin. Traditionally, those working in tanneries and other occupations that require workers to handle wool and animal hides have been at a greater risk for acquiring the disease. In these cases, the disease was contracted from animals infected by the anthrax bacteria in the soil. Anthrax's fundamental characteristic is its ability to retreat into spore form when its environment is unsuitable; these spores are immune to changes in temperature and humidity and are able to wait for a suitable host for up to several decades before becoming active again.

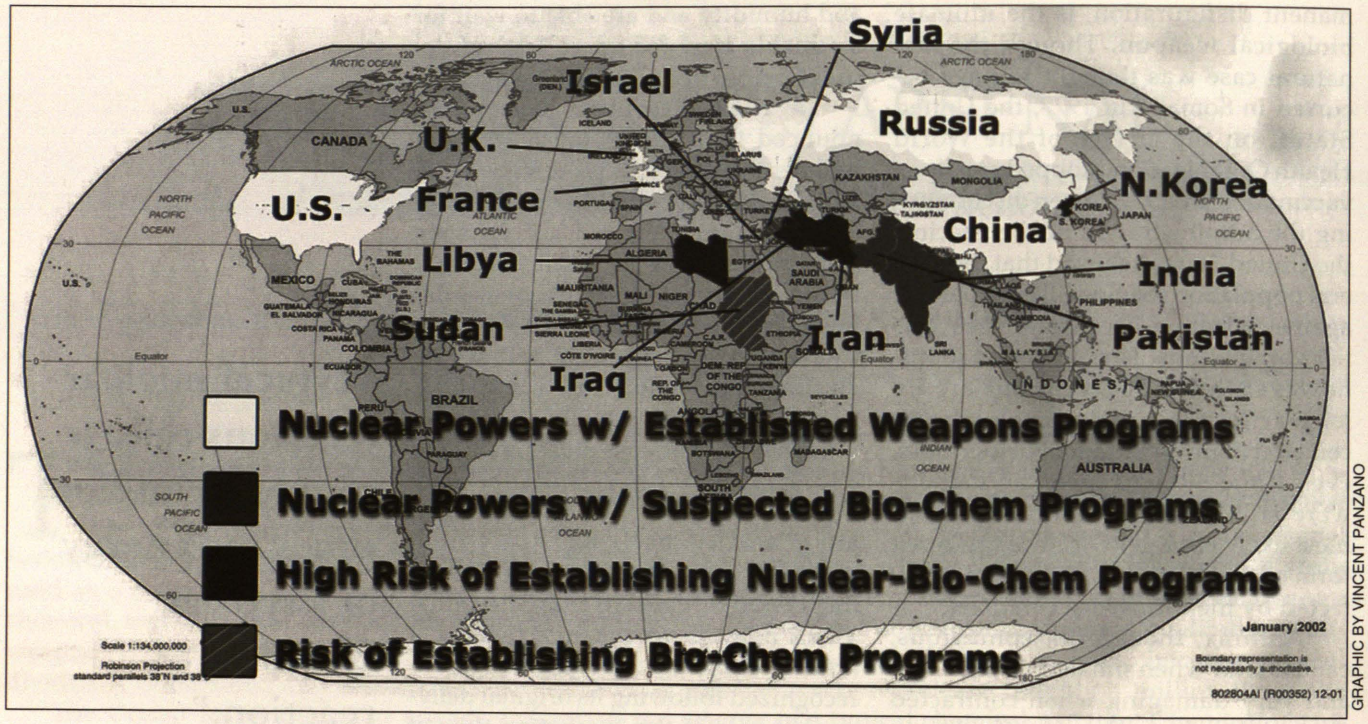
In 1969, President Nixon announced that the United States had unilaterally ceased its production of offensive chemical and biological weapons, and was committed to destroying all agents created for such purposes. Nixon's unilateral withdrawal was followed by the 1972 Biological Weapons Convention, in which 140 nations, including the Soviet Union and Iraq, signed the resulting treaty.

In terrorist attacks utilizing nuclear and chemical weapons, the attacks are immediately obvious and the effects are generally localized. Apart from possible nuclear fallout, the resulting dispersion of damage from the initial attack point is not major. A biological attack, on the other hand, may go unrecognized following its original delivery because of the incubation time of the agent: 12 to 14 days in the case of smallpox, and four to five days in the case of anthrax. The ability of the biological agents to spread, however, particularly in the cases of smallpox and plague, is absolutely devastating. Given modern means of transportation, such as planes, trains and buses, the number of people initially infected by a biological terrorist attack can easily grow exponentially, and the disease

**"Typical nuclear reactions release roughly a million times the energy of a typical chemical reaction."**




*A Ukrainian officer stands in front of empty SS-19 nuclear missile containers at a dismantling site at Dnepropetrovsk.*




"Smallpox is the ultimate biological weapon."

can spread worldwide.

This dangerous feature of biological attacks creates an inability to detect the location or date of the strike, leaving time for widespread dispersal of the agent. Possible responses to such an attack vary among the different weapon types. In the case of a nuclear attack, those not killed immediately will suffer extensive burn and radiation sickness and will require immediate hospitalization and medical treatment. In the case of a chemical attack, the injured will require hospitalization, possibly creating a shortage of hospital beds and medical facilities. In a biological attack, the number affected would grow over time, creating an international situation horrible beyond imagination.

A major problem, as previously mentioned, is the inability of medical officials to react. Not only are hospitals under pressure from local and federal authorities to increase the number of beds available for such catastrophic events, but also in the case of a nuclear attack, the destruction would be so great that any ability to react would be disrupted. With the amount of predicted debris from such an attack, an ambulance or other emergency vehicle would not be able to penetrate the destruction near the epicenter of the attack and no medical care at all would be available for many of those who survive the initial blast and radiation. The few simulations of various attack scenarios that have been carried out in major cities have demonstrated that the nation is inadequately prepared for attacks from weapons of mass destruction.

Given the intrinsic characteristics of each WMD, the goal of each weapon is to kill and incapacitate as many people as possible within the target area. In the biological case, to be effective, the virus or bacterium must be dispersed in an aerosol with particles between one and ten microns in diameter. If the particles were larger, they would not enter the lungs; if they were smaller, they would immediately be exhaled. In the case of contagious agents such as smallpox, however, such dispersion is unnecessary; only a small vial of the virus or a single infected suicidal attacker is all that would be required.

While terrorist acquisition of the smallpox virus would certainly be difficult, there are dozens of laboratory supply outlets within the U.S. that provide every other weapon strain mentioned thus far. Through the postal service, e-mail, and telephone orders, these agents are easily accessible, with

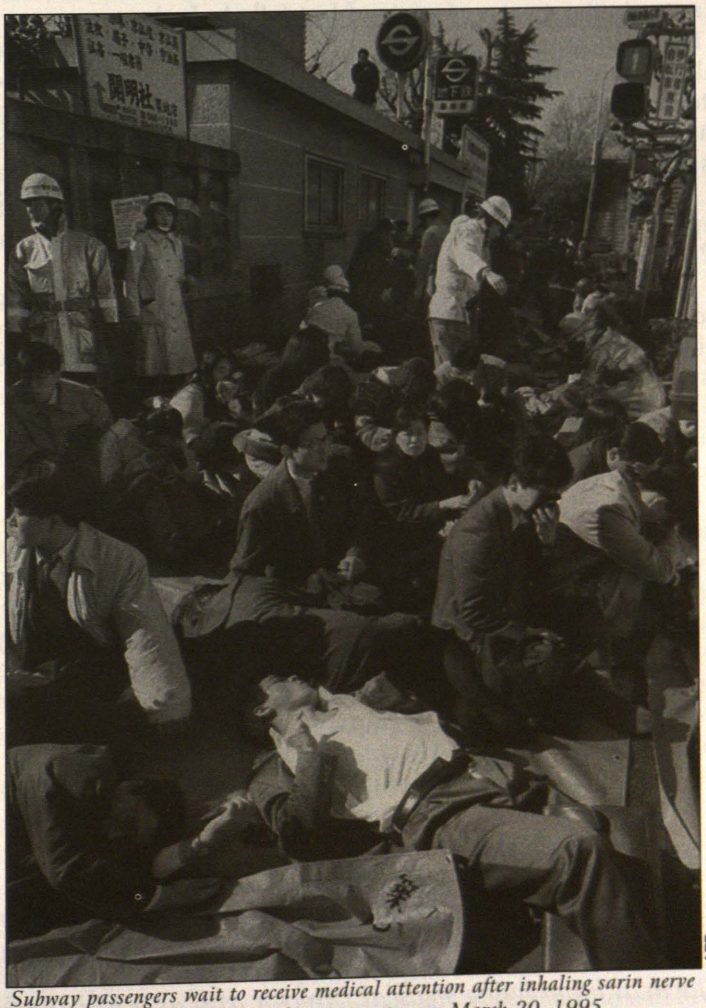
essentially no check on the intended recipient.

After Germany's use of mustard gas in World War I, the international community recognized the horrific nature of such a weapon and agreed to prevent its use. To an even greater extent during the Cold War, the recognition of the devastation that would follow a nuclear exchange between the U.S. and the Soviet Union provided effective deterrence, and for over half a century there has been no further use of nuclear weapons. This was the era of Mutually Assured Destruction (MAD), which many considered to be a fundamentally inhuman doctrine despite its effectiveness.

Although Mutually Assured Destruction may have seemed callous, it was certainly effective in deterring the use of WMDs. Unfortunately, however, there is no deterrence in the case of terrorist attacks. Because terrorists can choose the time, place, and weapon for an attack, detection and response are nearly impossible.

It is already clear that if we are to have any hope of adequate homeland security in the era following September 11, we must improve the planning, communication, and cooperation between our federal, state and local public health officials. Furthermore, we must consider what we are likely to need in the way of medical facilities and medication following an attack. We must also rapidly develop sensitive detectors that will alert us to the presence of chemical or biological agents, wherever they may be released.

The legal framework for our approach must also be examined. We must, for example, consider our posse comitatus laws (which prohibit the direct participation of military personnel in law enforcement), so that our military can participate effectively in the response to a WMD attack on any part of the United States. Finally, we must reconsider the intrinsic conflict between the civil liberties that we have come to cherish and respect in the United States, and the possible need for quarantine or containment that may be an essential part of our response to a WMD attack.♦



AFP

*Subway passengers wait to receive medical attention after inhaling sarin nerve gas released in Tokyo's metro system on March 20, 1995.*

**"There is no deterrence in the case of terrorist attacks."**

# THE PITTSBURGH MATRIX

## *Implications of Clinical Decision-Making in National Bioterrorism Planning and Response*

by Michael Allswede

The Japanese word for "crisis" is composed of two pictograms read vertically, one meaning "danger," the other meaning "opportunity." This poignant combination is particularly applicable in describing the current preparation of the United States for bioterrorism.

We all agree that we face a new danger in the specter of bioterrorism within our borders. For all its great potential, however, bioterrorism has only been responsible for five deaths in the last year. Bioterrorism represents a current national crisis, but we have the opportunity to prepare the great resources of this nation prior to a more adept application of biological weapons. Without a doubt, the nation is ready to prepare for bioterrorism, but for what should we prepare? What are the parameters of this new threat?

If one were to believe the media, bioterrorism consists of a smallpox or anthrax release in a stadium resulting in thousands or hundreds of thousands of dead and dying. While such scenarios are compelling, there has not been a single instance of such an attack succeeding. The anthrax scare of 2001, for example, was a succession of small-volume, tightly targeted attacks more closely resembling assassination attempts than population-based attacks. Although initially lumped together with al Qaeda, the anthrax terrorist actually provided an opportunity to limit deaths from anthrax by taking the detection problem away from authorities, as the letters contained an accurate description of the pathogen and suggested antibiotics that were also correct. Consider for a moment how much more difficult it would have been for health care systems had the attack been larger.

"Project Coast," the apartheid South African government's chemical and biological weapons program, used methodologies similar to the anthrax terrorists of last fall. A shadowy group combining scientists and special operations personnel, Project Coast focused primarily on the assassination of individuals or groups opposed to apartheid. Multiple operations were conducted with varied success and, most importantly, plausible deniability.[1] In the case of Project Coast, the confusion between naturally occurring disease and intended exposures was entirely intentional. The goals of the bioterrorist can vary from apocalyptic holocaust to murder of an individual. From the planning and response perspective, a primary component of the characterizing the threat must therefore consider the scale of attack and the number of victims.

In addition to scale of attack, the time of detection of an attack is also a critical component in responding to it. Those who were treated for anthrax exposure at the time of the receipt of the letter, for example, had a zero percent death rate from anthrax, but those who waited for a hospital diagnosis had a 70 percent death rate.[2] As America invests in detection technology with better intelligence analysis, biosensors and syndromic detection, medical interventions can be expected to change with these new capabilities. Detection of a bioterrorism attack may occur prior to release (through law enforcement and intelligence services), at the time of release (as in Fall and Winter of 2001), at the time of non-specific symptom recognition in an exposed population (by a syndromic detection system), at the time of hospital diagnosis of ill individuals or at the time of death/epidemic occurrence. Unfortunately, prior to the events of

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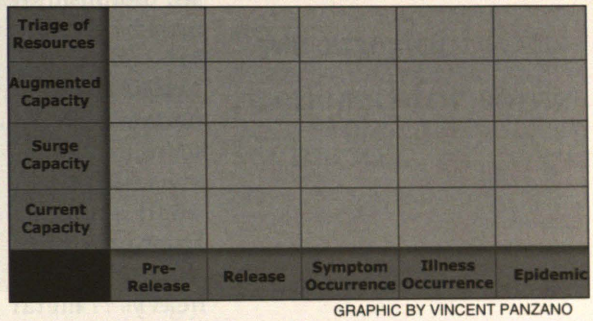
last fall, detection of unusual disease events in the United States occurred only *after* deaths of the intended victims, if at all.[3]

The time at which disease detection occurs will dictate the possible responses of the hospital or health care system. Prophylaxis or quarantine, for example, would be of primary importance early in the timeline, but would wane in effectiveness later on. The size of a quarantine effort may also markedly change the later on the timeline one detects the bioterrorism event should the disease be communicable.

During the Cold War, the number of Soviet missiles and the time from launch to detonation were quantifiable factors. Civil defense planners of the 1950s and 1960s could then work with relatively accurate estimates of victims and timeframes. Specific strategies, such as bomb shelters, were developed. With respect to bioterrorism, the variety of diseases, exposure methodologies, multiple releases, and multiple agents complicates the definition and planning for bioterrorism. Bioterrorism is probably best considered as a set of multiple threats, each with different characteristics and mitigation strategies. The fundamental challenge for public policy in biodefense is to characterize the threat itself.

**The Pittsburgh Model of Medical Response Quantification**

From the medical perspective, response and mitigation of a bioterrorist event for medical personnel mean saving lives that wouldn't be saved otherwise. The Pittsburgh Matrix model for quantification of a health care system response to bioterrorism was created by the author and his collaborator, Dr. Samuel Watson of the University of Pittsburgh Graduate School of Public Health. This model includes scalar effects, a timeline of detection and, most importantly, is directed at life-saving critical decisions. As postulated, those critical actions and priorities of a hospital or medical system will be primarily affected by these two assessments as much as by pathogen identification. A representative matrix can be developed with various timeline and scalar combinations in which "Current Capacity" would be defined by the number of victims that a hospital or system could absorb without altering normal operations. "Surge Capacity" refers to maximal crisis mode capacity. "Augmented Capacity" refers to capacity derived from external resources, and "Triage of Resources" refers to "battlefield" triage in which maximum good is done for the maximum number.




GRAPHIC BY VINCENT PANZANO

As a hospital or health system adds resources in terms of better organization and increased capacity, a given numerical scenario will be plotted successively lower on the vertical axis. Early recognition and added capabilities can move a given scenario from right to left on the horizontal axis. Poor decision-making and inadequate planning will move the scenario management to the upward and to the right. Mortality can be expected to increase by moving up and rightward on the matrix.

The initial confusion of the anthrax attacks can largely be explained by the supposition on the part of most leaders that we were preparing for a "Deaths/Epidemic-Triage of Resources" anthrax problem when in fact we were in the "Release-Current Capacity" box. As a decision support tool, each box can be constructed to contain critical decisions and resources identified along with agent specific recommendations.

**Implications of Pathogen Characteristics**

Hospitals don't take care of matrix boxes, however; they take care of real patients with real infections. Pathogens have a multitude of characteristics that are of medical relevance, but from the planning and response perspective, there are three medically salient factors:

**Communicability/Quarantine Needs**

This agent characteristic defines quarantine and isolation needs not only for patients but also for exposed but asymptomatic individuals. This is a critical characteristic, as quarantine will be

> "Multiple operations were conducted with varied success, and, most importantly, plausible deniability."

a difficult civic-medical effort.

**Effectiveness of Medical Treatment**

Some bioterrorism diseases are not amenable to treatment, others have unproven treatments, and still others have highly effective treatments. The urgency of pharmaceutical intervention can be determined by this analysis. Botulism treatment, for example, must be given prior to symptom onset to be effective.

**Availability of Medical Treatment**

Certain bioterrorism agents have obscure treatments available only in small amounts. Examples include antitoxins, heavy metal chealators, or vaccines. The availability of a given treatment may potentially change management strategy from treatment to palliation.

| Communicability/Quarantine Needs | |
|---|---|
| 0 | Non-communicable/No Quarantine |
| 1 | Blood and Body Fluid/Universal Precautions |
| 2 | Close Contact/Universal Precautions |
| 3 | Airborne/HEPA Filtration |
| **Effectiveness of Medical Treatment** | |
| 0 | Comfort Measures Only Needed |
| 1 | Highly Effective - Survival > 50% |
| 2 | Improved - Survival < 50% |
| 3 | Ineffective - Survival < 10% |
| **Availability of Medical Treatment** | |
| 0 | Non-Pharmaceutical Treatment |
| 1 | Multiple Available Pharmaceuticals |
| 2 | Insufficient Local Supply Pharmaceutical |
| 3 | Obscure or Experimental Pharmaceuticals |

GRAPHIC BY VINCENT PANZANO

To express these characteristics in economic terms usable by decision-makers, variability within each core characteristic is scored as indicated in the accompanying graphic.

The addition of these numerical values indicates the primary threat value of each pathogen. For example, a single case (plotted as "Current Capabilities-Illness Occurrence) of smallpox would be scored much differently than a single case of anthrax (ref: Ames strain Fall and Winter of 2001).

| Variola | | Ames Anthrax | |
|---|---|---|---|
| Communicability: | 3 | Communicability: | 1 |
| Effectiveness: | 3 | Effectiveness: | 1 |
| Availability: | 2 | Availability: | 1 |
| Total: | 8 | Total: | 3 |

GRAPHIC BY VINCENT PANZANO

A risk analysis for each pathogen can then be applied to each of the timeline-scalar boxes to express risk and to define critical decisions at each point. For example, the calculation for a large anthrax event might be postulated as outlined in the table above.

**Policy Implications**

Bioterrorism represents a departure from the Cold War paradigm in which the threat was quantifiable in terms of targets, timeline of attack, and destructive capability. The pressure to mitigate the dangers of bioterrorism without clear focus on defining the threat has created a large amount of money earmarked for "bio-defense" that may not be particularly well directed. One sage recently quipped, "Ready, Fire, Aim" to characterize programmatic development for bioterrorism over the past few years. Without an understanding of the spectrum of potential bioterrorism scenarios, our plans may develop with significant gaps.

> "Without an understanding of the spectrum of potential bioterrorism scenarios, our plans may develop with significant gaps."

Are we prepared for bioterrorism? That question has created debate and controversy in the U.S. Congress, the Oval Office, and the living rooms of regular Americans. The answer is that we are prepared for some scenarios; particularly low-scale attacks involving more benign pathogens detected early in the timeline.

We are probably not capable of affecting outcomes for large-scale, highly lethal, highly communicable scenarios detected late in the timeline.[4] Using a tool like the Pittsburgh Matrix, an accurate assessment of medical preparedness can be developed for a variety of potential scenarios, and potential agents. Through this methodology, it is possible to iden-

tify and assess the value of new capabilities relative to the spectrum of events that are representative of the bioterrorism threat. Armed with these matrices, we have prepared our medical system to rapidly identify critical needs and estimate casualties. The value in terms of lives saved per dollar spent can be estimated for new detection technologies such as syndromic surveillance systems or deploying bioaerosol detectors in various scenarios. The value of preemptive law enforcement interdiction, a vaccination program, or a new medication can also be evaluated in similar fashion.

| Surge Capacity | 3 | 3 | 4 | 5 | 6 |
|---|---|---|---|---|---|
| | Pre-Release | Release | Symptom Occurrence | Illness Occurrence | Epidemic |

**Pre-Release-Augmented:** Need for augmented pharmaceuticals not acute because of advanced warning (1+1+1)

**Release-Augmented:** Need for augmented pharmaceutical not acute because of early warning (1+1+1)

**Symptom Occurrence:** Later timeline effects delivery of pharmaceuticals (Availability now a 2)

**Illness Occurrence:** Late arriving antibiotics are losing effectiveness (Effectiveness now a 2)

**Epidemic Occurrence:** Antibiotics no longer effective in outcome (Effectiveness now a 3)

GRAPHIC BY VINCENT PANZANO

An example of the decision-support utility would be the decision to stockpile antibiotics or to develop an early warning syndromic surveillance system. In an anthrax aerosol attack, a syndromic detection system may detect victims earlier so that they may take cheaper prophylactic medications with greatly improved survival rates for victims. Without syndromic detection, however, victims may not only emerge later with higher mortality, but they will also need to be hospitalized and treated with more expensive medications. The capabilities of a syndromic detection system may be of primary use in a larger volume attack but completely miss a small outbreak like that among the postal workers last fall. Thus, the decision to build syndromic detection capability or to stockpile antibiotics is in a dynamic relationship with the scenario itself.

Defining the likelihood of a specific bioterrorism attack is primarily an intelligence function, but "biodefense," in terms of saving the lives of the victims, is a combination of intelligence preparations and medical response. Defining the values of medical response capabilities is highly useful to medical systems and has relevance in guiding the development of public policy for bio-defense.

By clearly understanding not only the threat but also the new capabilities of medical systems in relation to other civic assets, the national biodefense strategy can be developed efficiently and with maximum benefit.♦

"We are not prepared for some scenarios."

**Endnotes**

[1] Testimony of Dr. Schalk van Rensburg, Truth and Reconciliation Commission, June 1998.

[2] Mortality and Morbidity Update: Investigation of Bioterrorism-Related Anthrax and Interim Guidelines for Exposure Management and Antimicrobial Therapy, October 2001, CDC.

[3] Example: Sin Nombre Virus 1992, and West Nile Outbreak 2000.

[4] Example: "Dark Winter" Exercise conducted in June 2001; O'Toole, Mair, Inglesby, Confronting Biological Weapons, CID, 2002:34.

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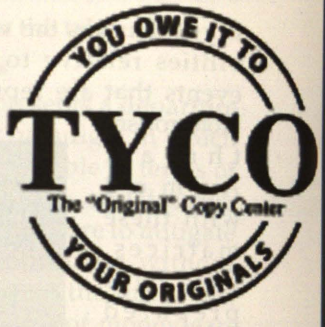


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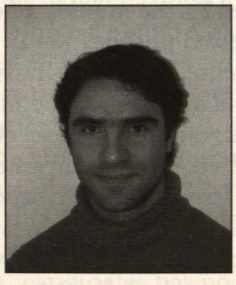
# TOWARDS A NEW VOTING STRATEGY

## *Electoral Institutions for Individual Candidacies*

by Anastassios Kalandrakis



The significant intellectual and political efforts expended prior to the adoption of constitutions around the world is *prima facie* evidence that the choice of rules governing political interaction is consequential. One of the goals of modern political science is to understand the effect of alternative institutional choices on political behavior and outcomes. Ultimately, the goal of this research program is to produce feasible recommendations for constitutional engineers and political actors. In the spirit of this research agenda, I will argue in favor of a particular set of institutions for the purposes of electing a single individual representative or a group of individual representatives.

I shall piece my argument in two parts. First, I will outline the analytical considerations that guide my recommendation. It will become obvious from this discussion that we cannot hope to reach unconditional conclusions as to the appropriateness of particular electoral institutions for all types of democratic elections. In the second part, I will argue that for a subset of these elections — those in which candidacies emerge as a result of relatively unconstrained individual choice — the electoral system of the alternative vote (AV) or single transferable vote (STV) possess a number of attractive properties.

### Comparing Electoral Institutions

Electoral institutions may differ with respect to many of the outcomes and political behaviors they induce. For example, we may wish to evaluate electoral systems on the basis of the nature of the electoral campaigns they produce, the complexity of the ballot process and the types of policies that emerge.

Of all the above, I focus on the last, asking what institutions produce "good" winners. By "good," I mean two things: first, candidates or alternatives that rank higher with regard to attributes the electorate considers desirable. These may depend on the particular election, but what I have in mind are features such as competence, intelligence, moral integrity and problem-solving abilities. Second, when it comes to attributes of the candidates or alternatives on which the electorate disagree, such as ideological preferences, I deem moderate winners better than extremists. This extends to any type of ideological disagreement, but in the traditional left-right spectrum, moderate candidates are centrist candidates in contrast to extremely right- and left-wing candidates.

With the criteria for comparing electoral outcomes clarified, it becomes obvious that in order to decide which electoral institutions produce better outcomes we need to answer two interrelated, auxiliary questions: (a) what kinds of candidates or alternatives are likely to be available to voters under different institutions? and (b) for a given set of candidates or alternatives, which one(s) is (are) likely to win? Clearly, the answer to the first question depends on the second: potential candidates are likely to decide whether to run in anticipation of the likelihood of winning.

An additional complication, perhaps not obvious, is that the answer to the first question also depends on whether we are dealing with an environment where viable candidacies require the endorsement of a political party. With political parties operative, some individuals may not be able or willing to contest the election. Parties may command resources or institutional advantages such that no outside candidates

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can be successful. But, even among members of the party, some that might otherwise be willing to contest the election may be effectively prevented, perhaps in anticipation of another form of compensation or penalty by the party.

I term candidacies in such environments *collective candidacies*, even if individuals are the ultimate winners of the election. Elections with *individual candidacies*, to which the cryptic (up to this point) title of the article refers, are all remaining elections involving individuals. In the U.S. context, this would include all types of primaries, and certainly elections in all sorts of organizations, clubs or associations.

In a rather radical limitation in the scope of my discussion, my arguments in the sequel apply in the case of individual candidacies. To provide a minimally defensible analysis for elections with collective candidacies we need assumptions or theories as to the number of political parties that form and the types of policies they pursue. Furthermore, if the election's purpose is to elect a committee or legislature that subsequently must decide on policies, we must also be able to answer how a given partisan composition of the legislature translates into policies. These are difficult questions that form part of an exciting area of current research in political science, but one that is much more difficult to do justice to in the limited space of this article.

As long as we are not dealing with the complications of partisan institutions, there is no restriction as to the number of those among the candidates who are to be elected. For example, we may be dealing with a situation where a single representative is elected, or a case when a group (a subset among the candidates) is elected, like an executive committee or governing body.

"Parties may command resources or institutional advantages such that no outside candidates can be successful."

## The Single Transferable Vote

The institution known as the single transferable vote[1] (STV) performs particularly well according to the criteria I established in the beginning of the previous section. This institution is in use for elections to the parliaments of a number of countries, most notably Ireland, Australia and Malta. Before I proceed, I must point out that STV is one of many in the plethora of existing or conceivable institutions that improve upon widely used alternatives. My argument in what follows requires a concrete example, and STV serves that purpose. There are also more intricate grounds on the basis of which this system outperforms similar alternatives, but I won't get into such details. Let me start with a brief description of the system.

Suppose we have $n$ candidates, $k$ of which are to be elected. Voters cast ballots in which they rank all candidates from first preference to last. In order to be elected, a candidate must exceed a quota which is equal to the number of ballots divided by the number of candidates to be elected plus one (k+1). In the case of the election of a single individual (k=1) the quota amounts to the familiar 50 percent plus one vote. The election of the winners, then, proceeds in a series of counts. In the first count, each candidate receives votes according to the voters' first preferences, i.e. for each ballot only the candidate ranked first receives a single vote. If, after the first count, some candidates exceed the quota, they are elected. If no candidate exceeds the quota, then the candidate with the lowest score drops from subsequent counts. In the next count, the ballots with the eliminated candidate as first preference are then counted using the second indicated preferences. This process continues until enough candidates exceed the quota.[2]

Since the logic of the argument does not depend on the number of seats to be allocated, I will discuss the properties of this system for the simple case when a single representative is to be elected (k=1). The key to understanding the operation of the system is the fact that typically, the winner is not determined in the first count. If one of the candidates is so widely and intensely preferred so as to receive more than 50 percent of first preferences, then that candidate is unusually good. But with many candidates, voters' first preferences are likely to be more balanced: hence the winner emerges from subsequent counting rounds. Thus, although candidates still need to earn voters' first preferences, those that receive many second or third preferences are more likely to win.

Now consider which types of candidates are more likely to be ranked higher:

first, among candidates with similar other attributes, those who are more moderate emerge ahead. Second, among candidates with given ideological dispositions, those who rank higher in non-ideological but relevant attributes are most likely to win. For example, voters from both the left or right part of the spectrum prefer moderate candidates more than extreme candidates with the opposite policy disposition. and are thus more likely to rank centrist candidates higher. Similarly, for given ideological differences among candidates, those perceived more effective, intelligent or principled are ranked higher.

Thus, when it comes to determining likely winners among a given set of candidates, STV produces winners with the same criteria for evaluating the performance of alternative electoral systems established in the previous section. To the contrary, the popular alternative of plurality rule allows a single vote among candidates, and thus mere sympathy for "good" candidates has no tangible electoral consequence. Importantly, this can be shown to be independent of whether we assume the voters are sophisticated and are thus likely to misrepresent their true preferences or that they truthfully reveal their dispositions when casting a ballot.

The above hinges on the assumption that many candidates are likely to contest the election and, furthermore, that there are individuals who are ideologically moderate or "good" according to universally accepted standards among these candidates. The obvious reason why the latter is true is that such candidates have a higher chance to win. Besides the above, I want to add a number of considerations that I believe weigh importantly when it comes to the choice of individuals to contest an election and revolve around the types of electoral tactics that are likely to win an election.

In particular, STV significantly reduces the value of earning voters' first preference. Since the winner is likely to be determined in subsequent counts, candidates who would have no chance under plurality (perhaps because they cannot invest in aggressive campaigns relying on large budgets or on the distribution of electoral favors) have some chance to win under STV as long as they can survive the initial rounds of elimination and receive many second preferences. In a nutshell, a vote earned under plurality is earned at the expense of all other candidates, which need not be the case under STV.

Finally, candidates often run in order to allow the electorate to simply record a preference, without hope of winning. For example, it may be useful in another political arena to make it publicly known that a certain fraction of the electorate supports a particular policy. Under STV, it is costless for a minority of voters to record their preference via their first ranking for a candidate they anticipate will be eliminated and indicate their consequential preferences in the remainder of their ballot.

I have argued that in elections where established political parties do not coincide with or determine viable candidacies, the electoral system of the single transferable vote (or alternative vote) produces winners that are ideologically moderate and/or rank high on features universally deemed desirable by the electorate. If voters are not strategic and sincerely reveal their preferences when casting a ballot, then the argument in favor of STV applies naturally to a number of other systems that solicit additional information from voters. This additional information simultaneously attracts better candidacies and produces better winners. On the contrary, popular alternatives such as plurality or majority rule with a runoff election fare considerably worse on those counts. ♦

"A vote earned under plurality is earned at the expense of all other candidates."

**Endnotes**

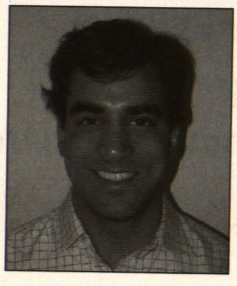
[1] In the special case when a single candidate is elected, STV is also called the Alternative vote, at least in Australia where it is in use for the election of representatives to parliament.

[2] In the case of a single seat (k =1) this is straightforward. With more than one seat to be allocated we need to determine what happens after counting rounds in which some candidate(s) exceed(s) the quota and there are still seats to be allocated. In these cases a somewhat involved procedure is applied so that a number of ballots of the winner(s) in that counting round that exceed the quota are used in subsequent counting rounds using the indicated ranking immediately following the preference for the elected candidate(s).

# BLAMING THE BOURGEOISIE

## *The Decline of the Liberal Education*

by Philip Shaw



That Yale has become too pre-professional is a complaint heard all too frequently these days. The masses of "three-suited, worsted-stocking" seniors filing by the career office are nowhere close to the romantic visions of awkward dons lost in thought. People point to the increasing popularity of concentrations which might lead on to careers in the professions, much to the chagrin of traditions such as history or classics. Learning is no longer pursued for its own sake; intellectual beauty is no longer admired on its own terms; the integrity of education has been compromised by a commercial, consumption-driven society.

Alas, you might ask, who destroyed liberal education at Yale? The answer, I think, would have to be the middle class. Before the indiscriminate admission of the middle classes, the vast majority of Yale men came from established families, flirted with books with elegant nonchalance and went on to work, should they be so inclined, for people that they got to know at the Club.

The ambitious young students from bourgeois families, however, were different. The accident of birth was not on their side, and they had to rely on the novel idea of merit to make their mark. For most of them the entry to the professions was a matter not of inclination, but of necessity.

In time, the number of middle-class students at Yale grew substantially, and the influences of the established families waned. But pre-professionalism, by which I mean a concentration on one's career prospects, is still spoken of with distaste even today. Whereas the cries against pre-professionalism used to come from the Right, nowadays they usually come from the Left. Apparently, a concern with one's future career (which, of course, means money, income and wealth) has tainted the purity of intellectual pursuit which liberal education is supposed to represent.

We all know liberal education is the education of free men. Nowadays, "free men" seems to mean independent-thinking people, unfettered by prejudices or material motives. But "free men," etymologically, meant men who were not slaves, men who very probably owned slaves. Only such free men could afford sophists to teach them the arcane arts which were completely useless in agriculture, and only they had the time to pursue such intellectual games while the slaves toiled away. And here, the use of "men" is strict and intentional. Women were not a part of this liberal education. Liberal education was meant for the leisure class, and thus it remained for a long time. Liberal education's decidedly non-useful character was actually an honor badge of wealth. Its intellectual purity and want of immediate application were "an expression of a pecuniary culture." The liberally educated man found money contemptible, because he had it, and did not want or need to worry about it.

The liberally educated man did not care to enter the professions. The leisure class was beyond such things. As such, liberal education was necessarily privileged and exclusive. Because such an education was divorced from immediate application, society could not support more than a handful of such indolent people. Problems arose when the landed aristocracy began to crumble under the assault of democracy. After the two world wars, the flower of landed aristocracy everywhere had been either killed in the field or bankrupted. In America, which never had a real landed aristocracy in the first place, the G.I. Bill swept away any last resistance to the introduction of the democratic element into the institutions of higher learning.

From the perspective of the leisure class, democratization had two effects. First, once the requirements of admission

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came to depend on merit and money, birth no longer counted very much. The aesthetic of graceful indolence had become replaced by an ethic of purposeful diligence, so the value-foundation of a leisured liberal education was shaken. Second, democratization extended higher education to the bourgeois middle class, hitherto barred from the ivory tower's august preserve. (The poor were never and still are not really allowed in.) The middle class does not have that much money and needs to worry about it constantly. The rationalism by which the bourgeoisie has done well dictates that it finds something useful in education; the middle class must make education pay for itself. And in proportion as the cost of education rises, the requirement that education be productive is that much greater.

In this process of "making education pay," of making it into something productive, economic, rational and useful, the liberal education of the leisure class became the employment certification of the middle class, and has thus lost some of its most beautiful qualities. Oscar Wilde declared, "All art is useless," and so was a liberal education of the leisure class; but like art, such a system had enormous aesthetic appeal. Although the liberally educated man probably did not go for intellectual pursuit as he did for the parties and carousing; theoretically at least, university could be justified merely on its spiritual richness. But with the middle class, education is supposed to yield a return; it is human capital, it is investment. Education thus became more competitive, less idealistic, and more goal-oriented. Liberal education, which is catholic in spirit, broad in scope and eclectic in origin, has broken down and become narrowed and specialized.

Such a collapse is sad. This sadness, though, is a price which I propose well worth paying insofar as we insist on a more democratic and expansive distribution of educational opportunities. One must remember that supporting the leisure class and their liberal education were masses of working people, whose labor must produce enough surpluses to compensate for the unproductivity of a privileged section. The beauty of the leisure class was accompanied everywhere and always by the ugliness and indigence of the lower classes. This is an inequality which our present morals will not tolerate. As education becomes more democratic and more expansive, it must force open its doors to people who do not have the luxury of a secured career and income. And in so doing, it must prepare to be more purposeful, more applicable and more productive, and more geared toward the professions.

Such a change is slowly happening already. What is considered a liberal education today would probably not have been considered as such a hundred years ago. Such useful arts as engineering and economics would probably not have been allowed in these hallowed halls. The Chinese of the 19th century, who had their own version of an education of the leisure class, were scandalized that schools should teach mathematics and geometry, skills they thought worthy of only the accountant and the landscaper. We do not hear such doomsday alarms anymore.

Pre-professionalism has thus arrived, and is unlikely to go away. I do not seek to justify it: I cannot give reasons for the desire to live a comfortable life. There is no shame in wanting to improve one's material condition. Nor do I seek to reconcile it with liberal education; as things stand and as far as I can see, the two are irreconcilable. They belong to different ages and one must gain at the expense of the other. Pre-professionalism, I propose, is an inevitable price of making education more accessible and more democratic.

My wonder is not over the fact that people should criticize pre-professionalism, just as I do not wonder if people should decide to criticize democracy. Such criticisms have had too long a history. I can understand a reactionary from the Right regretting the pre-professional democratization of Oxford. My puzzlement is that the new critics of the Left should swallow the mythical idealization of liberal education without realizing the social ills which necessarily accompanied it — that they should be so oblivious to the economic exigencies of the lower and middle classes who see in education the hope of making their lives better. There was a time when the Left was more sensible; there was a time when Virginia Woolf recognized that, before one could pursue pleasures of the intellect, one must have money and a room of one's own.♦

**"The liberally educated man did not care to enter the professions. The leisure class was beyond such things."**

# COLLEGE DEMOCRATS

## *Old Flame, New Fire*

by Ashley Bell

On campuses across the country the College Democrats of America (CDA) are putting innovation, activism and patriotism back into politics. In order to capture the interest of today's Generation Y, political activism must be packaged in a way that appeals to the average college student. Going back to the proverbial "drawing board" is something that must be done again and again in order to keep a fresh face on an aged struggle: fighting voter apathy.

In 2002, CDA made a 180 degree turn to become a better custodian of Democratic ideals on college campuses. We share the Democratic values of opportunity, freedom, and fairness for all. We are charged with the task of pushing those values in a very unique medium: the college campus. It is not about having the best "party" on campuses anymore; it is about recruiting the best and brightest students, who believe in a party of the people, not the powerful.

This year CDA reinvented an effort designed in the 1970s by United Farm Worker activist Cesar Chavez. A champion of downtrodden farmers, Chavez changed the face of politics in the southwest by developing grassroots voter registration and petition drives. By doing more with less, activists traveled from neighborhood to neighborhood with an ironing board in the back seat of their cars and one noble purpose in mind: they would go stand at a street corner, raise their ironing board, and use them as voter registration stands without the hassle or expense of tables and chairs. Cesar Chavez taught us that it is not how much you have, but how you use what you've got.

To help bring back the passion of progressive activism to college campuses, we adopted "Get on BOARD" (Better Our America, Register Democrat) as a national voter registration and grassroots mobilization campaign. Using ironing boards on college campuses, College Democrats have begun to turn the tide on apathy. From "Free Speech Alley on the campus of Louisiana State University to the chalked sidewalks of the University of Wisconsin, another generation of college students is catching the fever of progressive grassroots politics. We are successful because student volunteers drive our national agenda for CDA, not spin doctors and political flunkies in some war room in Washington.

College Democrats are becoming the one-stop shop for any student who cares about her environment, her choice, her education, and her freedom. Being a party of many groups and constituencies, just like America, we are constantly working to build a better house for our Democratic family. In a College Dems meeting, you are likely to see a collage of students who are also members of other organizations, such as the NAACP, SAVE (Students Against Violating the Earth), GLSA (Gay and Lesbian Students Association), and the student government. Many of these students do not come from families whom Republican policymakers respond to, because many of them don't belong to the wealthiest one percent of America's population.

On the other hand, Democrats have to listen to everyone. We listen because we represent the rest of America, those who get promised in rhetoric but rain-checked in policy by Republicans time and time again.

It is always comical when appropriations legislation comes up in the House and representatives debate Federal Grants for Higher Education. It is one of the rare occasions when some College Republicans want to stand with College Democrats to see that funding will at least match the rate of tuition increases across the country. Last year, Republicans froze increases in Pell Grants as tuition went up another five percent. This rain check for America's future from the Republicans did not stand well with America's college students, and it will continue to drive them across the aisle. Students know their interests are being pushed aside, and they also know whose interests are not.

The Democratic agenda is pro-student because we make sure that our leadership understands our needs. Democratic leaders and the Democratic National Committee have provided a seat at the table for college students. College students are keeping our party honest to issues that we care about.

There is more to being a College Democrat than mere affiliation with our party. We also strive to participate in and influence our party's agenda. In 2002, College Dems showed the country that CDA is not merely a political club, but rather a student driven action network. In one weekend alone, College Dems from across the country went into Sioux Falls, South Dakota and knocked on over 14,000 doors because they believed in Tim Johnson when he spoke of a better America that begins with our youth.

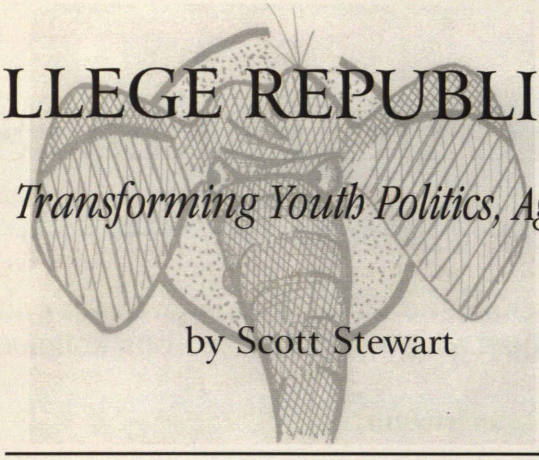
Our mission is to take students beyond the rhetoric, then motivate and mobilize them to not just stand for something but to move on it. We believe in a better america that begins with the liberal compassion to keep fighting until opportunity, freedom and fairness are a reality for all Americans. ♦

*Ashley Bell is the National President of College Democrats of America and a first-year law student at Louisiana State University in Baton Rouge, La.*

# COLLEGE REPUBLICANS

## *Transforming Youth Politics, Again*

by Scott Stewart



Making a difference with young people in politics has never been an easy task. It took James Francis Burke more than a year to found the American Republican College League in 1892. President Benjamin Harrison expressed his enthusiastic sentiments to Burke that same year, declaring, "The wonder is that the necessity and promise of this work was not sooner appreciated by all of us. It has a disseminating power that no other political work has." The College Republicans have set out to transform youth politics again, using the same proven methods of our predecessors. Our record of accomplishment could not be clearer.

In the past three years, the College Republican National Committee expanded from 409 to 1,148 active chapters and increased its annual budget from $250,000 to $1.4 million. The cornerstone of this remarkable growth has been a series of successful field programs. For just over 11 weeks each fall, full-time College Republican field representatives travel to colleges and universities across the country. They run recruitment tables, hold training seminars, and help mobilize newly energized student activists into making a difference both on and off campus. The first program in 1999 employed five full-time representatives and established over 220 new college Republican chapters. Building on this remarkable success, we expanded the program to 12 field representatives in 2000, 15 in 2001, and 33 this year.

What does all of this really mean in terms of political muscle? The numbers speak for themselves. During the first eight weeks of this fall semester, our field representatives built or strengthened organizations at 359 campuses, recruited over 21,000 new College Republicans, and identified and registered over 16,000 student Republicans who had never voted before. We conducted aggressive campus canvasses, absentee ballot programs, and mobilized an unprecedented 11,000 student volunteers to participate in get-out-the-vote operations in targeted campaigns that enabled a historic Republican victory. In Missouri alone, 75 percent of the get-out-the-vote workers in the final 72 hours of the campaign were students recruited by the College Republicans.

The dramatic rise in the College Republicans in the past few years stands in stark contrast to the equally precipitous fall of the College Democrats. By their own admission in a National Journal article last March, the College Democrats have "between 200 and 300 chapters across the nation, down from over 800 in 1993."

In September, the DNC attempted to jump-start the College Democrats. A DNC press release claimed that they would run over 200 "Youth to the Booth" rallies across the nation, and listed ten top locations. Sadly, this attempt merely highlighted their organizational weakness when significantly more College Republicans than College Democrats attended every one of their ten targeted rallies, embarrassing Karenna Gore Schiff in New Mexico 30 to four, a Democrat party boss in Florida 71 to 24, and even DNC Chairman Terry McAuliffe at the University of Maryland 67 to 21. In spite of their hollow protestations to the contrary, like much of the Left, College Democrats are woefully fragmented and disorganized, and are simply no longer a factor on the university campus.

In response, perhaps, to monolithically liberal college faculty, students today are questioning the tired rhetoric and empty promises of the left. Our generation has witnessed first-hand the failings of socialism with the collapse of the Soviet Union, and tragic attacks on our country have moved us to come together as Americans, despite the tactics of racial and class division that the Democrats have long employed.

It certainly helps to have a Republican president clearly articulating a strong and common-sense approach to both foreign and domestic policy. In fact, in a recent nationwide survey, the Tarrance Group found that fully 75 percent of college students approved of the job George W. Bush is doing as President, with 41 percent expressing strong approval. More and more young people are embracing the time-tested principles of individual responsibility, limited government, and other core conservative values that have made our nation great.

Not only are conservatives winning the ideological fight among students, we are without question outmaneuvering the liberals on the ground. Studies have shown that the most effective way to increase political and civic engagement among young people is to simply ask. With 1,148 real, active, and well-organized campus chapters, the College Republicans are in a unique position to do some serious asking.

Through ten name changes, forty-one national chairmen, and many seasons of incredible accomplishment, the College Republicans have been influencing the political process in our republic for over 110 years. Not only are we a force today, we are most certainly laying a strong foundation for the conservative movement and Republican Party of tomorrow. James Burke would be proud. ♦

*Scott Stewart graduated from Yale in 1998 with a B.A. in history and is currently serving his second term as Chairman of the College Republican National Committee.*

# RESPONDING TO TOXIC THREATS

## *Understanding the Dangers of Biological and Chemical Terrorism*

by Serge Grossman and Ben Schrader

Over the past year, policy makers have become increasingly concerned that a terrorist group or rogue nation might use biological or chemical weapons against U.S. targets. This anxiety has driven numerous government agencies, including the Center for Disease Control, the Department of Defense, and the Federal Emergency Management Agency to develop response plans in the case of an attack. But despite the growing threat these weapons present and the rise in government attention devoted to them, the public remains largely uninformed about the real peril posed by nonconventional weapons. The danger of biological and chemical weapons is far greater than the destruction they might cause; their true power lies in the fear they would create.

Chemical and biological weapons pose a unique and dangerous threat to American interests. But it would be difficult for terrorists to acquire and use them. Even if terrorists were able to obtain chemical nerve agents such as sarin, VX and mustard gas, they would most likely lack sufficient quantities to inflict heavy casualties. The Aum Shinrikyo cult in Japan, for example, spent an estimated $30 million to develop and produce sarin gas, yet killed only twelve people in a coordinated attack on the Tokyo subway system. Despite the limitations of these weapons in producing mass casualties, however, they still have the power to inflict serious economic damage and disrupt the American way of life.

Although biological weapons potentially represent a far more dangerous threat than their chemical counterparts, these too have significant limitations. They are hazardous to handle, and the most deadly, like smallpox, are extremely difficult to acquire. The most likely terrorist scenario is one that we have already witnessed: the limited release of an inefficient biological weapon. The anthrax attacks in October 2001 demonstrated the ability of biological weapons to wreak havoc. Although the anthrax attacks killed only five people, they disrupted the U.S. Postal System, closed down Senate office buildings, and created widespread fear and unease.

The U.S. government has already made a significant investment in preparing for a chemical or biological attack. Since the early 1990s, hundreds of millions of dollars have been appropriated to the nation's 120 largest cities to prepare adequate responses to these potential catastrophes. In the wake of September 11, these allocations have increased dramatically.

In addition to devising a containment strategy to isolate and treat victims, the national government, in collaboration with state and local agencies, must develop a comprehensive approach to assuage the public's fears before and after an attack. Education campaigns must seek not only to raise awareness, but also to outline proper responses to particular scenarios for disaster.

Terrorist attacks employing weapons of mass destruction remain a very real threat, whose probability of occurrence may increase as terrorist networks grow in sophistication and continue to evade authorities. But we must not allow ourselves to succumb to the panic that these attacks are designed to provoke. This, it seems, is one of the most difficult challenges of toxic warfare, and one which we must work tirelessly to avoid.♦

*Serge Grossman and Ben Schrader are the Editors-in-Chief of* The Politic. *They are senior history majors in Saybrook and Pierson College, respectively, at Yale University.*

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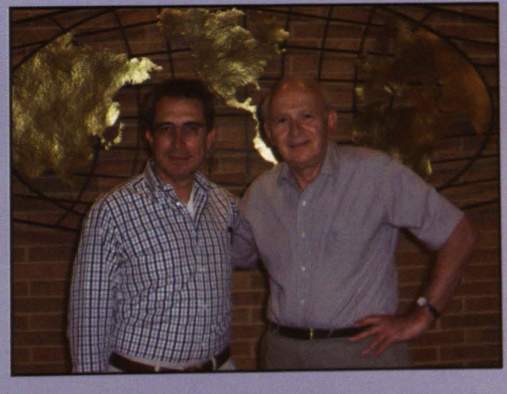

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